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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:16-cv-03000-RBJ

Stephenson-Licciardi v. Lutheran Hospital Association of the San
Luis Valley et al

Assigned to: Judge R. Brooke Jackson

Case in other court: USCA, 19-01196

Cause: 28:1332 Diversity-Medical Malpractice

Date Filed: 12/08/2016

Date Terminated: 10/01/2018

Jury Demand: Both

Nature of Suit: 362 Personal Inj. Med.

Malpractice

Jurisdiction: Diversity

Plaintiff

Christian Licciardi

an individual

TERMINATED: 03/28/2018

represented by **Chris Andrew Wellman**

Wellman & Warren LLP

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Katherine Mary Windler

Law Office of Katherine Windler

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ATTORNEY TO BE NOTICED

Plaintiff

Patrice Stephenson-Licciardi

on behalf of

Christian Licciardi

represented by **Chris Andrew Wellman**

(See above for address)

ATTORNEY TO BE NOTICED

Scott W. Wellman , Sr.

(See above for address)
ATTORNEY TO BE NOTICED

Katherine Mary Windler
(See above for address)
ATTORNEY TO BE NOTICED

V.

Defendant

**Lutheran Hospital Association of the San
Luis Valley**
a Colorado Corporation
doing business as
San Luis Valley Regional Medical Center

represented by **Lena Kathleen Moeller**
Williams Porter Day & Neville PC
P.O. Box 10700
159 North Wolcott
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Casper, WY 82602
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ATTORNEY TO BE NOTICED

Defendant

William Cooper
an individual

represented by **Andrew Christopher Efaw**
(See above for address)
ATTORNEY TO BE NOTICED

Ellen E. Herzog
(See above for address)
ATTORNEY TO BE NOTICED

Kathleen Chambers Warner
(See above for address)
ATTORNEY TO BE NOTICED

Kevin D. Homiak
(See above for address)
ATTORNEY TO BE NOTICED

Lena Kathleen Moeller
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Radiology and Imaging Consultants, P.C.
a Colorado Corporation
TERMINATED: 04/18/2018

represented by **Barbara H. Glogiewicz**
Caplan & Earnest LLC
3107 Iris Avenue
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LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Andrew Christopher Efaw
(See above for address)
TERMINATED: 03/01/2017

Defendant

Jeffrey Freeman
an individual
TERMINATED: 09/07/2018

represented by **Bruce A. Montoya**
Messner Reeves LLP
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TERMINATED: 03/01/2017

Kevin D. Homiak
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ATTORNEY TO BE NOTICED

Defendant

Valley-Wide Health Systems, Inc.
a Colorado Corporation
TERMINATED: 05/22/2018

represented by **Jacob Licht-Steenfat**
U.S. Attorney's Office-Denver
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LEAD ATTORNEY
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Andrew Christopher Efaw
(See above for address)
TERMINATED: 03/01/2017

Defendant

Kyle Phillips
an individual
TERMINATED: 05/22/2018

represented by **Jacob Licht-Steenfat**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Andrew Christopher Efaw
(See above for address)
TERMINATED: 03/01/2017

Defendant

Steven Hake
an individual

represented by **Jessie Marie Fischer**
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ATTORNEY TO BE NOTICED

Defendant

Patrick Martin

an individual

TERMINATED: 04/18/2018

represented by **Andrew Christopher Efaw**

(See above for address)

ATTORNEY TO BE NOTICED

Ellen E. Herzog

(See above for address)

ATTORNEY TO BE NOTICED

Kevin D. Homiak

(See above for address)

ATTORNEY TO BE NOTICED

Defendant

Claud Bays

an individual

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ATTORNEY TO BE NOTICED

Kevin D. Homiak

(See above for address)

ATTORNEY TO BE NOTICED

Defendant

Michael Bonnet

an individual

represented by **Andrew Christopher Efaw**

(See above for address)

ATTORNEY TO BE NOTICED

Ellen E. Herzog

(See above for address)
ATTORNEY TO BE NOTICED

Kevin D. Homiak
 (See above for address)
ATTORNEY TO BE NOTICED

V.

Consol Defendant

USA
TERMINATED: 09/25/2018

represented by **Jacob Licht-Steenfat**
 (See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

William Dean Carter
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ATTORNEY TO BE NOTICED

Date Filed	#	Docket Text
12/08/2016	1	COMPLAINT <i>FOR MEDICAL MALPRACTICE</i> against William Cooper, Jeffrey Freeman, Lutheran Hospital Association of the San Luis Valley, Kyle Phillips, Radiology and Imaging Consultants, P.C., Valley-Wide Health Systems, Inc. (Filing fee \$ 400, Receipt Number 1082-5278781) Attorney Katherine Mary Windler added to party Christian Licciardi(pty:pla), filed by Christian Licciardi. (Attachments: # 1 Civil Cover Sheet)(Windler, Katherine) (Entered: 12/08/2016)
12/08/2016	2	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 1 Complaint, filed by attorneys Chris A. Wellman and Katherine Windler. The document was scanned and not converted directly to portable document format (PDF). DO NOT REFILE THE DOCUMENT. Action to take - future documents must be filed pursuant to D.C.COLO.LCivR 5.1(a) and 1.3(f) of the Electronic Case Filing Procedures (Civil Cases). (Text Only Entry) (agarc,) (Entered: 12/08/2016)
12/08/2016	3	Case assigned to Judge Richard P. Matsch and drawn to Magistrate Judge Kathleen M. Tafoya. Text Only Entry. (agarc,) (Entered: 12/08/2016)
12/08/2016	4	Magistrate Judge consent form issued pursuant to 28 U.S.C. 636(c). (agarc,) (Entered: 12/08/2016)
12/08/2016	5	MEMORANDUM RETURNING CASE for reassignment by Judge Richard P. Matsch. (ktera) (Entered: 12/08/2016)
12/08/2016	6	CASE REASSIGNED pursuant to 5 Memorandum Returning Case. This case is reassigned to Magistrate Judge Nina Y. Wang. All future pleadings should be designated as 16-cv-03000-NYW. (Text Only Entry) (ktera) (Entered: 12/08/2016)
12/08/2016	7	Magistrate Judge consent form issued pursuant to D.C.COLO.LCivR 40.1, direct assignment of civil actions to full time magistrate judges. (ktera) (Entered: 12/08/2016)

12/08/2016	8	Exhibits in Support of 1 Complaint, <i>Amended Civil Case Cover Sheet</i> by Plaintiff Christian Licciardi. (Wellman, Scott) (Entered: 12/08/2016)
12/08/2016	9	SUMMONS REQUEST as to Jeffrey Freeman re 1 Complaint, by Plaintiff Christian Licciardi. (Wellman, Scott) (Entered: 12/08/2016)
12/08/2016	10	SUMMONS REQUEST as to Kyle Phillips re 1 Complaint, by Plaintiff Christian Licciardi. (Wellman, Scott) (Entered: 12/08/2016)
12/08/2016	11	SUMMONS REQUEST as to Lutheran Hospital of the San Luis Valley dba San Luis Valley Regional Medical Center re 1 Complaint, by Plaintiff Christian Licciardi. (Wellman, Scott) (Entered: 12/08/2016)
12/08/2016	12	SUMMONS REQUEST as to Radiology and Imaging Consultants, P.C. re 1 Complaint, by Plaintiff Christian Licciardi. (Wellman, Scott) (Entered: 12/08/2016)
12/08/2016	13	SUMMONS REQUEST as to Valley-Wide Health Systems, Inc. re 1 Complaint, by Plaintiff Christian Licciardi. (Wellman, Scott) (Entered: 12/08/2016)
12/08/2016	14	SUMMONS REQUEST as to William Cooper re 1 Complaint, by Plaintiff Christian Licciardi. (Wellman, Scott) (Entered: 12/08/2016)
12/08/2016	15	NOTICE of Entry of Appearance <i>Chris Wellman</i> by Chris Andrew Wellman on behalf of Christian Licciardi (Wellman, Chris) (Entered: 12/08/2016)
12/09/2016	16	SUMMONSES issued by Clerk. (Attachments: # 1 Summons, # 2 Summons, # 3 Summons, # 4 Summons, # 5 Summons, # 6 Magistrate Judge Consent Form) (nmarb,) (Entered: 12/09/2016)
12/16/2016	17	ORDER by Magistrate Judge Nina Y. Wang on 12/16/16, Setting Scheduling/Planning Conference and Setting Deadline for Filing of Consent/Nonconsent Form. Consent Form due by 2/7/2017. Scheduling Conference set for 2/21/2017 10:00 AM in Courtroom C204 before Magistrate Judge Nina Y. Wang. (nmarb,) (Entered: 12/16/2016)
01/24/2017	18	First MOTION for Extension of Time to <i>Continue Deadlines Set Forth in Scheduling Order</i> by Plaintiff Christian Licciardi. (Attachments: # 1 Affidavit Declaration of Scott W. Wellman, # 2 Proposed Order (PDF Only) Proposed Order Granting Motion)(Wellman, Scott) (Entered: 01/24/2017)
01/25/2017	19	SUMMONS Returned Executed by Christian Licciardi. Lutheran Hospital Association of the San Luis Valley served on 1/18/2017, answer due 2/8/2017. (Wellman, Scott) (Entered: 01/25/2017)
01/25/2017	20	SUMMONS Returned Executed by Christian Licciardi. William Cooper served on 1/18/2017, answer due 2/8/2017. (Wellman, Scott) (Entered: 01/25/2017)
01/25/2017	21	SUMMONS Returned Executed by Christian Licciardi. Kyle Phillips served on 1/18/2017, answer due 2/8/2017. (Wellman, Scott) (Entered: 01/25/2017)
01/25/2017	22	ORDER granting in part and denying in part 18 Motion for Extension of Time. The Scheduling Conference set for 2/21/2017 is VACATED and RESET to 3/16/2017 at 11:00 AM in Courtroom C204 before Magistrate Judge Nina Y. Wang. Counsel shall submit their joint proposed scheduling order on or before 3/9/2017, and shall submit the Consent/Nonconsent Form by 3/2/2017. By Magistrate Judge Nina Y. Wang on 1/25/2017. Text Only Entry (nywlc1) (Entered: 01/25/2017)
01/25/2017	23	SUMMONS Returned Executed by Christian Licciardi. Valley-Wide Health Systems, Inc. served on 1/18/2017, answer due 2/8/2017. (Wellman, Scott) (Entered: 01/25/2017)

01/25/2017	24	SUMMONS Returned Executed by Christian Licciardi. Jeffrey Freeman served on 1/14/2017, answer due 2/6/2017. (Wellman, Scott) (Entered: 01/25/2017)
01/26/2017	25	SUMMONS Returned Executed by Christian Licciardi. Radiology and Imaging Consultants, P.C. served on 1/19/2017, answer due 2/9/2017. (Wellman, Scott) (Entered: 01/26/2017)
01/26/2017	26	NOTICE of Entry of Appearance by Lena Kathleen Moeller on behalf of William Cooper, Lutheran Hospital Association of the San Luis ValleyAttorney Lena Kathleen Moeller added to party William Cooper(pty:dft), Attorney Lena Kathleen Moeller added to party Lutheran Hospital Association of the San Luis Valley(pty:dft) (Moeller, Lena) (Entered: 01/26/2017)
01/26/2017	27	NOTICE of Entry of Appearance by Kathleen Chambers Warner on behalf of William Cooper, Lutheran Hospital Association of the San Luis ValleyAttorney Kathleen Chambers Warner added to party William Cooper(pty:dft), Attorney Kathleen Chambers Warner added to party Lutheran Hospital Association of the San Luis Valley(pty:dft) (Warner, Kathleen) (Entered: 01/26/2017)
02/06/2017	28	NOTICE of Entry of Appearance by Bruce A. Montoya on behalf of Jeffrey FreemanAttorney Bruce A. Montoya added to party Jeffrey Freeman(pty:dft) (Montoya, Bruce) (Entered: 02/06/2017)
02/06/2017	29	STIPULATION for Extension of Time to Answer or Respond to the Complaint by Defendant Jeffrey Freeman.. (Knowles, Katherine) (Entered: 02/06/2017)
02/06/2017	32	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 29 Stipulation for Extension of Time to Answer/Respond to Complaint filed by attorney Katherine Knowles. DO NOT REFILE THE DOCUMENT. Action to take - counsel must submit a change of name request through the Attorney Services Portal Account pursuant to D.C.COLO.LAttyR 5(c) and 3.5 of the Electronic Case Filing Procedures (Civil Cases). (Text Only Entry) (nmarb,) (Entered: 02/07/2017)
02/07/2017	30	NOTICE of Entry of Appearance by Barbara Hruby Glogiewicz on behalf of Radiology and Imaging Consultants, P.C.Attorney Barbara Hruby Glogiewicz added to party Radiology and Imaging Consultants, P.C.(pty:dft) (Glogiewicz, Barbara) (Entered: 02/07/2017)
02/07/2017	31	STIPULATION for Extension of Time to Answer or Respond to the Complaint by Defendant Radiology and Imaging Consultants, P.C.. Radiology and Imaging Consultants, P.C. answer due 3/2/2017. (Glogiewicz, Barbara) (Entered: 02/07/2017)
02/07/2017	33	STIPULATION for Extension of Time to Answer or Respond to the Complaint <i>Pursuant to D.C.COLO.L.CivR. 6.1(a)</i> by Defendants William Cooper, Lutheran Hospital Association of the San Luis Valley.. (Warner, Kathleen) (Entered: 02/07/2017)
02/23/2017	34	AMENDED COMPLAINT <i>first</i> against William Cooper, Jeffrey Freeman, Lutheran Hospital Association of the San Luis Valley, Kyle Phillips, Radiology and Imaging Consultants, P.C., Valley-Wide Health Systems, Inc., filed by Christian Licciardi. (Attachments: # 1 Summons to First Amended Complaint, # 2 Summons to First Amended Complaint)(Wellman, Scott) (Entered: 02/23/2017)
02/24/2017	35	SUMMONS issued by Clerk, to Kyle Phillips for Amended Complaint. (Attachments: # 1 Magistrate Judge Consent Form) (nmarb,) (Entered: 02/24/2017)
02/24/2017	36	SUMMONS issued by Clerk, to Valley-Wide Health Systems, Inc., for Amended Complaint. (Attachments: # 1 Magistrate Judge Consent Form) (nmarb,) (Entered: 02/24/2017)

02/24/2017	37	SUMMONS REQUEST as to Steven Hake re 34 Amended Complaint, by Plaintiff Christian Licciardi. (Wellman, Scott) (Entered: 02/24/2017)
02/27/2017	38	SUMMONS issued by Clerk to Steven Hake. (Attachments: # 1 Magistrate Judge Consent Form) (nmarb,) (Entered: 02/27/2017)
03/01/2017	39	ANSWER to 1 Complaint, by William Cooper, Lutheran Hospital Association of the San Luis Valley.(Warner, Kathleen) (Entered: 03/01/2017)
03/01/2017	40	NOTICE of Voluntary Dismissal of Party <i>Radiology and Imaging Consultants, P.C.</i> by Plaintiff Christian Licciardi (Wellman, Scott) (Entered: 03/01/2017)
03/01/2017	41	NOTICE of Entry of Appearance by Andrew Christopher Efaw on behalf of William Cooper, Jeffrey Freeman, Lutheran Hospital Association of the San Luis Valley, Kyle Phillips, Radiology and Imaging Consultants, P.C., Valley-Wide Health Systems, Inc. Attorney Andrew Christopher Efaw added to party William Cooper(pty:dft), Attorney Andrew Christopher Efaw added to party Jeffrey Freeman(pty:dft), Attorney Andrew Christopher Efaw added to party Lutheran Hospital Association of the San Luis Valley(pty:dft), Attorney Andrew Christopher Efaw added to party Kyle Phillips(pty:dft), Attorney Andrew Christopher Efaw added to party Radiology and Imaging Consultants, P.C.(pty:dft), Attorney Andrew Christopher Efaw added to party Valley-Wide Health Systems, Inc.(pty:dft) (Efaw, Andrew) Modified on 3/2/2017 to show attorney as representing only two of the defendants, others added incorrectly. (nmarb,). (Entered: 03/01/2017)
03/01/2017	42	NOTICE of Entry of Appearance of <i>Kevin Homiak</i> by Andrew Christopher Efaw on behalf of William Cooper, Jeffrey Freeman, Lutheran Hospital Association of the San Luis Valley, Kyle Phillips, Radiology and Imaging Consultants, P.C., Valley-Wide Health Systems, Inc. (Efaw, Andrew) (Entered: 03/01/2017)
03/02/2017	43	CONSENT to Jurisdiction of Magistrate Judge by Plaintiff Christian Licciardi All parties do not consent.. (Wellman, Scott) (Entered: 03/02/2017)
03/03/2017	44	CASE REASSIGNED pursuant to 43 Consent to Jurisdiction of Magistrate Judge. All parties do not consent. This case is randomly reassigned to Judge R. Brooke Jackson. All future pleadings should be designated as 16-cv-03000-RBJ. (Text Only Entry) (nmarb,) (Entered: 03/03/2017)
03/03/2017	45	MINUTE ORDER: In light of 44 Case Reassigned, the Scheduling Conference set for 3/16/2017, at 11:00 AM before Magistrate Judge Nina Y. Wang is VACATED. By Magistrate Judge Nina Y. Wang on 3/3/2017. Text Only Entry (nywlc2,) (Entered: 03/03/2017)
03/03/2017	46	ORDER TO SET SCHEDULING CONFERENCE: This matter comes before the Court sua sponte. In light of the decline of consent to a magistrate judge by one or more of the parties in this case and its reassignment to this Court, the Scheduling Conference set March 16, 2017 before Magistrate Judge Nina Wang has been VACATED. The parties are ordered to set an initial scheduling conference in this Court (with Judge Jackson) pursuant to Fed. R. Civ. P. 16(b) and D.C.COLO.LCivR 16.1. The parties are directed to jointly contact Chambers by telephone at (303) 844-4694 or by email at Jackson_Chambers@cod.uscourts.gov to obtain a scheduling conference date within 14 days of the date of this order. By Judge R. Brooke Jackson on 3/3/17. (rbjsec,,) (Entered: 03/03/2017)
03/08/2017	47	SUMMONS Returned Executed by Christian Licciardi. Valley-Wide Health Systems, Inc. served on 3/3/2017, answer due 3/24/2017. (Wellman, Scott) (Entered: 03/08/2017)

03/08/2017	48	SUMMONS Returned Executed by Christian Licciardi. Kyle Phillips served on 3/3/2017, answer due 3/24/2017. (Wellman, Scott) (Entered: 03/08/2017)
03/09/2017	49	<i>Jeffrey Freeman's</i> ANSWER to 34 Amended Complaint, <i>for Medical Malpractice</i> by Jeffrey Freeman.(Bailey, Katherine) (Entered: 03/09/2017)
03/09/2017	50	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 49 Answer to Amended Complaint filed by attorney Katherine Bailey. The document is incorrectly formatted. Double Space. DO NOT REFILE THE DOCUMENT. Action to take - future documents must be filed pursuant to D.C.COLO.LCivR 10.1. (Text Only Entry) (jhawk,) (Entered: 03/10/2017)
03/15/2017	51	CERTIFICATE <i>Of Review Pursuant to CRS 13-20-602</i> by Plaintiff Christian Licciardi. (Wellman, Scott) (Entered: 03/15/2017)
03/16/2017	52	MINUTE ORDER: A Scheduling Conference is set for May 9, 2017 at 8:30 a.m. in Courtroom A 902 before Judge R. Brooke Jackson. By Judge R. Brooke Jackson on 3/16/17. Text Only Entry (rbjsec) (Entered: 03/16/2017)
03/20/2017	53	DESIGNATION OF NON-PARTY by Defendants William Cooper, Lutheran Hospital Association of the San Luis Valley. (Homiak, Kevin) (Entered: 03/20/2017)
04/06/2017	54	ANSWER to 34 Amended Complaint, by Lutheran Hospital Association of the San Luis Valley.(Warner, Kathleen) (Entered: 04/06/2017)
04/11/2017	55	SUMMONS Returned Executed by Christian Licciardi. Steven Hake served on 4/3/2017, answer due 4/24/2017. (Wellman, Scott) (Entered: 04/11/2017)
05/02/2017	56	CERTIFICATE <i>OF REVIEW</i> by Defendants William Cooper, Lutheran Hospital Association of the San Luis Valley. (Homiak, Kevin) (Entered: 05/02/2017)
05/04/2017	57	NOTICE of Change of Address/Contact Information by Kathleen Chambers Warner (Warner, Kathleen) (Entered: 05/04/2017)
05/09/2017	58	COURTROOM MINUTES/MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Scheduling Conference held on 5/9/2017. Expert Discovery due by 5/12/2018, Dispositive Motions due by 6/9/2018. Two to Three week Jury Trial set to commence 9/10/2018 at 9:00 AM in Courtroom A 902 before Judge R. Brooke Jackson with a Trial Preparation Conference on 8/16/2018 at 1:30 PM in Courtroom A 902 before Judge R. Brooke Jackson. Court Reporter: Sara Mitchell. (jdyne,) (Entered: 05/09/2017)
05/09/2017	59	SCHEDULING ORDER: by Judge R. Brooke Jackson on 5/9/17. (jdyne,) (Entered: 05/09/2017)
05/09/2017	60	ORDER SETTING TRIAL AND TRIAL PREPARATION CONFERENCE: This matter has been scheduled for a two to three week Jury Trial on the docket of Judge R. Brooke Jackson in the U.S. District Courthouse, Courtroom A902, 9th Floor, 901 19th Street, Denver, Colorado, to commence on September 10, 2018 at 9:00 a.m. A Trial Preparation Conference is set for August 16, 2018 at 1:30 p.m. Please refer to the order for additional details. By Judge R. Brooke Jackson on 5/9/17. (rbjsec.) (Entered: 05/09/2017)
05/26/2017	61	NOTICE of Entry of Appearance by Stephen Jerome Hensen on behalf of Steven HakeAttorney Stephen Jerome Hensen added to party Steven Hake(pty:dft) (Hensen, Stephen) (Entered: 05/26/2017)
05/26/2017	62	NOTICE of Entry of Appearance by Jessie Marie Fischer on behalf of Steven HakeAttorney Jessie Marie Fischer added to party Steven Hake(pty:dft) (Fischer, Jessie) (Entered: 05/26/2017)

06/08/2017	63	ANSWER to 34 Amended Complaint, <i>with Affirmative Defenses and Jury Demand</i> by Steven Hake.(Hensen, Stephen) (Entered: 06/08/2017)
08/08/2017	64	MOTION to Appoint Guardian ad Litem by Plaintiff Christian Licciardi. (Wellman, Scott) (Entered: 08/08/2017)
08/14/2017	65	MOTION to Amend/Correct/Modify 59 Scheduling Order by Plaintiff Christian Licciardi. (Attachments: # 1 Declaration, # 2 Exhibit A)(Wellman, Scott) (Entered: 08/14/2017)
08/16/2017	66	ORDER denying 64 Motion to Appoint GAL ad Litem. Deny without prejudice. Local rule 7.1A. By Judge R. Brooke Jackson on 8/16/17. Text Only Entry (rbjsec.) (Entered: 08/16/2017)
08/17/2017	67	ORDER granting 65 MOTION to Amend/Correct/Modify 59 Scheduling Order. By Judge R. Brooke Jackson on 8/17/17. Text Only Entry (rbjsec.) (Entered: 08/17/2017)
08/28/2017	68	NOTICE of Substitution of United States as defendant by Defendants Kyle Phillips, Valley-Wide Health Systems, Inc. (Attachments: # 1 Affidavit Ex. A - Troyer Certification)(Licht-Steenfat, Jacob) (Entered: 08/28/2017)
08/28/2017	69	Second MOTION to Appoint Guardian ad Litem by Plaintiff Christian Licciardi. (Attachments: # 1 Declaration of Patrice Licciardi, # 2 Declaration of Chris Wellman, # 3 Exhibit A)(Wellman, Scott) (Entered: 08/28/2017)
08/29/2017	70	ORDER granting 69 Motion to Appoint Legal Representative. By Judge R. Brooke Jackson on 8/29/17. Text Only Entry (rbjsec.) (Entered: 08/29/2017)
08/29/2017	71	MOTION for Leave to file <i>Second Amended Complaint</i> 34 Amended Complaint, by Plaintiff Christian Licciardi. (Attachments: # 1 Declaration of Chris Wellman, # 2 Exhibit A, # 3 Exhibit B, # 4 Exhibit C)(Wellman, Scott) (Entered: 08/29/2017)
08/30/2017	72	ORDER granting 71 MOTION for Leave to file Second Amended Complaint 34 Amended Complaint. The Court requests that the Clerk of Court's office docket the Second Amended Complaint at ECF No. 71-4. By Judge R. Brooke Jackson on 8/30/17. Text Only Entry (rbjsec.) Modified on 8/30/2017 to correct text (athom,). (Entered: 08/30/2017)
08/30/2017	73	Second AMENDED COMPLAINT for: Malpractice against William Cooper, Jeffrey Freeman, Steven Hake, Lutheran Hospital Association of the San Luis Valley, Kyle Phillips, Radiology and Imaging Consultants, P.C., Valley-Wide Health Systems, Inc., Patrick Martin, filed by Christian Licciardi pursuant to 72 Order. (athom,) (Entered: 08/30/2017)
09/06/2017	74	SUMMONS REQUEST as to Patrick Martin re 73 Amended Complaint, by Plaintiff Christian Licciardi. (Wellman, Scott) (Entered: 09/06/2017)
09/06/2017	75	NOTICE of Voluntary Dismissal of Party <i>Defendants Valley-Wide Health Systems, Inc. and Kyle Phillips</i> by Plaintiff Christian Licciardi (Wellman, Scott) (Entered: 09/06/2017)
09/07/2017	76	SUMMONS issued by Clerk. (dkals,) (Entered: 09/07/2017)
09/12/2017	77	<i>Defendant Steven Hake, MD's</i> ANSWER to 73 Amended Complaint, (<i>Second</i>), <i>Affirmative Defenses and Jury Demand</i> by Steven Hake.(Hensen, Stephen) (Entered: 09/12/2017)
09/13/2017	78	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES:re: 77 Answer to Amended Complaint filed by attorneyStephen Jerome Hensen.Attorney or pro se has used an incorrect signature format in violation of D.C.COLO.LCivR 5.1(a) and 4.3(a) of the Electronic Case Filing Procedures (Civil

		cases). DO NOT REFILE THE DOCUMENT. (Text Only Entry) (dkals,) (Entered: 09/13/2017)
09/18/2017	79	NOTICE of Entry of Appearance by Kevin D Homiak on behalf of Patrick MartinAttorney Kevin D Homiak added to party Patrick Martin(pty:dft) (Homiak, Kevin) (Entered: 09/18/2017)
09/18/2017	80	NOTICE of Entry of Appearance by Andrew Christopher Efaw on behalf of Patrick MartinAttorney Andrew Christopher Efaw added to party Patrick Martin(pty:dft) (Efaw, Andrew) (Entered: 09/18/2017)
09/20/2017	81	ANSWER to 73 Amended Complaint, by William Cooper, Lutheran Hospital Association of the San Luis Valley, Patrick Martin.(Homiak, Kevin) (Entered: 09/20/2017)
11/06/2017	82	Unopposed MOTION to Consolidate Cases by Plaintiff Christian Licciardi. (Attachments: # 1 Proposed Order (PDF Only))(Wellman, Scott) (Entered: 11/06/2017)
11/09/2017	83	ORDER granting 82 Unopposed Motion to Consolidate Cases. Plaintiffs Motion to Consolidate is GRANTED. 2. The Clerk of Court is directed to consolidate Case No. 17-cv-02464 into Case No. 16-cv-03000. All future documents in these cases shall be filed in Case No. 16-cv-03000. The Court requests that counsel jointly contact Chambers at (303) 844-4694 or Jackson_chambers@cod.uscourts.gov to schedule a telephone status conference to discuss whether the consolidated case will fit into the schedule adopted for the lead case. By Judge R. Brooke Jackson on 11/9/17. Text Only Entry (rbjsec.) (Entered: 11/09/2017)
11/14/2017	84	NOTICE of Entry of Appearance by Ellen Elizabeth Shea Herzog on behalf of William Cooper, Lutheran Hospital Association of the San Luis Valley, Patrick MartinAttorney Ellen Elizabeth Shea Herzog added to party William Cooper(pty:dft), Attorney Ellen Elizabeth Shea Herzog added to party Lutheran Hospital Association of the San Luis Valley(pty:dft), Attorney Ellen Elizabeth Shea Herzog added to party Patrick Martin(pty:dft) (Herzog, Ellen) (Entered: 11/14/2017)
11/15/2017	85	MINUTE ORDER: A Telephonic Status Conference is set for today, November 15, 2017 at 1:30 p.m. in Courtroom A 902 before Judge R. Brooke Jackson. The Court requests that counsel coordinate a conference call amongst themselves and then contact the Court at (303) 844-4694. By Judge R. Brooke Jackson on 11/15/17. Text Only Entry (rbjsec.) (Entered: 11/15/2017)
11/15/2017	86	COURTROOM MINUTES/MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Telephone Status Conference held on 11/15/2017, Court Reporter: Sarah Mitchell. (jdyne,) (Entered: 11/15/2017)
12/15/2017	87	Unopposed MOTION for Extension of Time to <i>issue written discovery requests</i> by Consol Defendant USA. (Licht-Steenfat, Jacob) (Entered: 12/15/2017)
12/18/2017	88	ORDER granting 87 Unopposed MOTION for Extension of Time to issue written discovery requests. By Judge R. Brooke Jackson on 12/18/17. Text Only Entry (rbjsec.) (Entered: 12/18/2017)
12/22/2017	89	ANSWER to Complaint by USA.(Licht-Steenfat, Jacob) (Entered: 12/22/2017)
01/24/2018	90	MOTION to Amend/Correct/Modify 86 Status Conference, Set Scheduling Order Deadlines, Terminate Deadlines and Hearings <i>depositions only</i> by Plaintiff Christian Licciardi. (Attachments: # 1 Proposed Order (PDF Only))(Wellman, Scott) (Entered: 01/24/2018)
01/25/2018	91	ORDER denying 90 MOTION to Amend/Correct/Modify 86 Status Conference, Set Scheduling Order Deadlines, Terminate Deadlines and Hearings <i>depositions only</i> . Your

		7.1(a) certificate is incomplete, as it does not indicate whether any party opposes the motion. By Judge R. Brooke Jackson on 1/25/18. Text Only Entry (rbjsec.) (Entered: 01/25/2018)
01/25/2018	92	Amended MOTION to Amend/Correct/Modify 85 Minute Order, <i>Depositions Only</i> by Plaintiff Christian Licciardi. (Attachments: # 1 Proposed Order (PDF Only))(Wellman, Chris) (Entered: 01/25/2018)
02/06/2018	93	MINUTE ORDER: A Telephonic Discovery Conference is set for February 8, 2018 at 10:00 a.m. in Courtroom A 902 before Judge R. Brooke Jackson. The Court requests that counsel coordinate a conference call between themselves and then contact the Court at (303) 844-4694. By Judge R. Brooke Jackson on 2/6/18. Text Only Entry (rbjsec.) (Entered: 02/06/2018)
02/08/2018	94	COURTROOM MINUTES/MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Telephone Discovery Hearing held on 2/8/2018. Discovery due by 3/16/2018, Dispositive Motions due by 6/15/2018. Court Reporter: Sarah Mitchell. (jdyne,) (Entered: 02/08/2018)
03/08/2018	95	MOTION to Amend/Correct/Modify 59 Scheduling Order <i>TO ALLOW THE INCLUSION OF CLAUD BAYS, M.D. AND MICHAEL BONNETT AS DEFENDANTS</i> by Plaintiff Christian Licciardi. (Attachments: # 1 Declaration of Chris Wellman, # 2 Exhibit A, # 3 Exhibit B, # 4 Exhibit C, # 5 Exhibit D, # 6 Exhibit E, # 7 Exhibit F, # 8 Exhibit G, # 9 Exhibit H, # 10 Proposed Order (PDF Only))(Wellman, Scott) (Entered: 03/08/2018)
03/08/2018	96	ERRATA re 95 MOTION to Amend/Correct/Modify 59 Scheduling Order <i>TO ALLOW THE INCLUSION OF CLAUD BAYS, M.D. AND MICHAEL BONNETT AS DEFENDANTS EXHIBITS E-H</i> by Plaintiff Christian Licciardi. (Attachments: # 1 Exhibit E, # 2 Exhibit F, # 3 Exhibit G, # 4 Exhibit H)(Wellman, Scott) (Entered: 03/08/2018)
03/14/2018	97	MINUTE ORDER: A Telephonic Discovery Conference is scheduled for March 16, 2018 at 10:30 a.m. in Courtroom A 902 before Judge R. Brooke Jackson. The Court requests that counsel coordinate a conference call and then contact the Court at (303) 844-4694. By Judge R. Brooke Jackson on 3/14/18. Text Only Entry (rbjsec.) (Entered: 03/14/2018)
03/16/2018	98	NOTICE of Issues for the March 16, 2018 Discovery Conference by Defendants William Cooper, Jeffrey Freeman, Steven Hake, Lutheran Hospital Association of the San Luis Valley, Patrick Martin, Kyle Phillips, Valley-Wide Health Systems, Inc., Consol Defendant USA (Attachments: # 1 Exhibit Patrice Licciardi Text Messages, # 2 Exhibit Defense Counsel Text Messages)(Homik, Kevin) (Entered: 03/16/2018)
03/16/2018	99	COURTROOM MINUTES/MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Telephone Discovery Hearing held on 3/16/2018. Court Reporter: Sarah Mitchell. (jdyne,) (Entered: 03/16/2018)
03/19/2018	100	Unopposed MOTION to Supplement 95 MOTION to Amend/Correct/Modify 59 Scheduling Order <i>TO ALLOW THE INCLUSION OF CLAUD BAYS, M.D. AND MICHAEL BONNETT AS DEFENDANTS</i> by Plaintiff Christian Licciardi. (Attachments: # 1 Exhibit A)(Wellman, Scott) (Entered: 03/19/2018)
03/20/2018	101	ORDER denying 95 MOTION to Amend/Correct/Modify 59 Scheduling Order <i>TO ALLOW THE INCLUSION OF CLAUD BAYS, M.D. AND MICHAEL BONNETT AS DEFENDANTS</i> . You need to file a motion to amend the complaint and comply with local rule 15.1. Once that is done you can submit an amended Scheduling Order that makes the appropriate additions and subtractions. By Judge R. Brooke Jackson on 3/20/18. Text Only Entry (rbjsec.) (Entered: 03/20/2018)

03/20/2018	102	ORDER denying 100 Unopposed MOTION to Supplement 95 MOTION to Amend/Correct/Modify 59 Scheduling Order TO ALLOW THE INCLUSION OF CLAUD BAYS, M.D. AND MICHAEL BONNETT AS DEFENDANTS. See the Court's order at ECF No. 101. By Judge R. Brooke Jackson on 3/20/18. Text Only Entry (rbjsec.) (Entered: 03/20/2018)
03/21/2018	103	NOTICE of Entry of Appearance by William Dean Carter on behalf of USAAttorney William Dean Carter added to party USA(pty:condft) (Carter, William) (Entered: 03/21/2018)
03/26/2018	104	Unopposed MOTION to Amend/Correct/Modify 73 Amended Complaint, by Plaintiff Christian Licciardi. (Attachments: # 1 Declaration of Scott Wellman, # 2 Exhibit 1) (Wellman, Scott) (Entered: 03/26/2018)
03/27/2018	105	ERRATA re 104 Unopposed MOTION to Amend/Correct/Modify 73 Amended Complaint, <i>Corrected Exhibit 1</i> by Plaintiff Christian Licciardi. (Attachments: # 1 Exhibit 1)(Wellman, Scott) (Entered: 03/27/2018)
03/27/2018	106	ORDER granting 104 Unopposed MOTION to Amend/Correct/Modify 73 Amended Complaint. The Court directs the plaintiff to file a clean version of the Third Amended Complaint. By Judge R. Brooke Jackson on 3/27/18. Text Only Entry (rbjsec.) (Entered: 03/27/2018)
03/27/2018	107	WITHDRAWN - AMENDED COMPLAINT <i>THIRD</i> against Claud Bays, filed by Christian Licciardi.(Wellman, Scott) Modified on 4/10/2018 to withdraw pursuant to 112 Order (dkals,). (Entered: 03/27/2018)
04/09/2018	108	MOTION to Withdraw Document re 107 Amended Complaint by Plaintiff Christian Licciardi. (Attachments: # 1 Declaration of Andrew Wellman, # 2 Exhibit A)(Wellman, Chris) (Entered: 04/09/2018)
04/09/2018	109	MOTION to Amend/Correct/Modify 73 Amended Complaint, by Plaintiff Christian Licciardi. (Attachments: # 1 Declaration of Chris Wellman, # 2 Exhibit A, # 3 Exhibit B, # 4 Exhibit C, # 5 Exhibit D, # 6 Exhibit E, # 7 Exhibit F, # 8 Exhibit G, # 9 Exhibit H) (Wellman, Chris) (Entered: 04/09/2018)
04/09/2018	110	ERRATA re 109 MOTION to Amend/Correct/Modify 73 Amended Complaint, <i>notice of compliance</i> by Plaintiff Christian Licciardi. (Wellman, Chris) (Entered: 04/09/2018)
04/09/2018	111	NOTICE of Voluntary Dismissal of Party <i>RADIOLOGY AND IMAGING CONSULTANTS, P.C</i> by Plaintiff Christian Licciardi (Wellman, Scott) (Entered: 04/09/2018)
04/10/2018	112	ORDER granting 108 MOTION to Withdraw Document re 107 Amended Complaint. If defendants oppose the new motion to amend, ECF No. 109, please file a short, concise statement providing the reasons for opposition. By Judge R. Brooke Jackson on 4/10/18. Text Only Entry (rbjsec.) (Entered: 04/10/2018)
04/10/2018	113	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES:re: 109 MOTION to Amend/Correct/Modify, , 110 Errata, 111 Notice of Dismissal of Party, 108 MOTION to Withdraw Document filed by attorneyScott W. Wellman.The s/signature did not match the filers name on the account for which the login and password are registered. DO NOT REFILE THE DOCUMENT. Action to take - future documents must be filed pursuant to D.C.COLO.LCivR 5.1(a) and 4.3(c) of the Electronic Case Filing Procedures (Civil cases).(Text Only Entry) (dkals,) (Entered: 04/10/2018)

04/11/2018	114	MINUTE ORDER re: 109 MOTION to Amend/Correct/Modify 73 Amended Complaint. A Telephone Conference is set for 4/18/2018 at 9:00 AM in Courtroom A 902 before Judge R. Brooke Jackson. The Court requests that counsel coordinate a conference call between each other and then contact the Court at (303) 844-4694. By Judge R. Brooke Jackson on 4/11/18. Text Only Entry (rbjsec.) (Entered: 04/11/2018)
04/17/2018	115	BRIEF in Opposition to 109 MOTION to Amend/Correct/Modify 73 Amended Complaint, filed by Defendants William Cooper, Lutheran Hospital Association of the San Luis Valley, Patrick Martin. (Attachments: # 1 Exhibit Ex. A - SLVH Medical Record, # 2 Exhibit Ex. B - Dr. Claud Bays Dep. Transcript, # 3 Exhibit Ex. C - Motion to Amend (8-29-17), # 4 Exhibit Ex. D - January 4 Email from Wellman to Homiak, # 5 Exhibit Ex. E - Dr. Martin Dep. Transcript, # 6 Exhibit Ex. F - February 23, 2018 Email from Wellman to Homiak, # 7 Exhibit Ex. G - Declaration of Homiak, # 8 Exhibit Ex. H - March 10 Email from Wellman to Homiak, # 9 Exhibit Ex. I - Audio Recording of Dr. McAuliffe on 11-12-17, # 10 Exhibit Ex. J - Facebook Post (1-22-16), # 11 Exhibit Ex. K - Proposed Scheduling Order 5-5-17, # 12 Exhibit Ex. L - Dr. Cooper Dep. Transcript)(Homiak, Kevin) (Entered: 04/17/2018)
04/17/2018	116	RESPONSE to 109 MOTION to Amend/Correct/Modify 73 Amended Complaint, <i>to File a "New" Third Amended Complaint</i> filed by Defendant Steven Hake. (Attachments: # 1 Exhibit Exhibit A to Defendant Hake's Response to Plaintiff's Motion for Leave to File a New Third Amended Complaint)(Hensen, Stephen) (Entered: 04/17/2018)
04/17/2018	117	RESPONSE to 109 MOTION to Amend/Correct/Modify 73 Amended Complaint, filed by Consol Defendant USA. (Carter, William) (Entered: 04/17/2018)
04/18/2018	118	COURTROOM MINUTES/MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Discovery Hearing held on 4/18/2018. 109 Motion to Amend Complaint is GRANTED. Third Amended Complaint is to be accepted for filing at ECF No. 109-9. Defendant Dr. Patrick Martin is DISMISSED. Court Reporter: Sarah Mitchell. (jdyne,) (Entered: 04/18/2018)
04/18/2018	119	Third AMENDED COMPLAINT against Claud Bays, William Cooper, Jeffrey Freeman, Steven Hake, Lutheran Hospital Association of the San Luis Valley, Patrick Martin, Kyle Phillips, Valley-Wide Health Systems, Inc., Michael Bonnet, filed by Patrice Stephenson-Licciardi pursuant to 118 Courtroom Minutes.(dkals,) (Entered: 04/19/2018)
04/27/2018	120	NOTICE of Entry of Appearance by Andrew Christopher Efaw on behalf of Claud Bays, Michael BonnetAttorney Andrew Christopher Efaw added to party Claud Bays(pty:dft), Attorney Andrew Christopher Efaw added to party Michael Bonnet(pty:dft) (Efaw, Andrew) (Entered: 04/27/2018)
04/27/2018	121	NOTICE of Entry of Appearance by Kevin D Homiak on behalf of Claud Bays, Michael BonnetAttorney Kevin D Homiak added to party Claud Bays(pty:dft), Attorney Kevin D Homiak added to party Michael Bonnet(pty:dft) (Homiak, Kevin) (Entered: 04/27/2018)
05/01/2018	122	TRANSCRIPT of Discovery Conference held on April 18, 2018 before Judge Jackson. Pages: 1-15. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 05/01/2018)

05/07/2018	123	MINUTE ORDER: A Telephone Discovery Hearing is set for May 8, 2018 at 10:30 a.m. in Courtroom A 902 before Judge R. Brooke Jackson. The Court requests that plaintiff's counsel provide a call-in conference line number to both the Court and opposing counsel. By Judge R. Brooke Jackson on 5/7/18. Text Only Entry (rbjsec,.) (Entered: 05/07/2018)
05/07/2018	124	STATUS REPORT <i>OF DEFENDANTS IN ADVANCE OF THE MAY 8, 2018 STATUS CONFERENCE</i> by Defendant Steven Hake. (Hensen, Stephen) (Entered: 05/07/2018)
05/08/2018	125	COURTROOM MINUTES/MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Telephone Discovery Hearing held on 5/8/2018. Court Reporter: Sarah Mitchell. (jdyne,) (Entered: 05/08/2018)
05/10/2018	126	TRANSCRIPT of Discovery Conference held on February 8, 2018 before Judge Jackson. Pages: 1-20. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 05/10/2018)
05/10/2018	127	TRANSCRIPT of Discovery Conference held on March 16, 2018 before Judge Jackson. Pages: 1-17. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 05/10/2018)
05/17/2018	128	CERTIFICATE of Review pursuant to C.R.S. § 13-20-602 re: 51 Certificate by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Wellman, Scott) (Entered: 05/17/2018)
05/18/2018	129	WITHDRAWN - MOTION to Dismiss <i>With Prejudice for Plaintiffs Failure to File a Proper Certificate of Review</i> by Defendants William Cooper, Lutheran Hospital Association of the San Luis Valley. (Attachments: # 1 Exhibit A - Signed Release - Final, # 2 Exhibit B - Certificate of Review- Final, # 3 Exhibit C - Motion for Leave to File TAC - Final, # 4 Exhibit D - Emails Between Wellman and Homiak - Final)(Homiak, Kevin) Modified on 5/21/2018 to withdraw pursuant to 133 Order (dkals,). (Entered: 05/18/2018)
05/18/2018	130	MOTION to Withdraw Document re 129 MOTION to Dismiss <i>With Prejudice for Plaintiffs Failure to File a Proper Certificate of Review</i> by Defendants William Cooper, Lutheran Hospital Association of the San Luis Valley. (Homiak, Kevin) (Entered: 05/18/2018)
05/18/2018	131	MOTION for Summary Judgment <i>Under Fed. R. Civ. P. 56 for Plaintiffs Failure to File a Proper Certificate of Review</i> by Defendants William Cooper, Lutheran Hospital Association of the San Luis Valley. (Attachments: # 1 Proposed Order (PDF Only), # 2 Exhibit A - Signed Release - Final, # 3 Exhibit B - Certificate of Review- Final, # 4 Exhibit C - Declaration of Homiak re COR MSJ (5-18-18), # 5 Exhibit D - Motion for

		Leave to File TAC - Final, # 6 Exhibit E - Emails Between Wellman and Homiak - Final) (Homiak, Kevin) (Entered: 05/18/2018)
05/21/2018	132	ORDER granting 130 Motion to Withdraw Document 129 . By Judge R. Brooke Jackson on 5/21/18. Text Only Entry (rbjsec.) (Entered: 05/21/2018)
05/21/2018	133	ORDER withdrawing 129 Motion to Dismiss. See ECF No. 130. By Judge R. Brooke Jackson on 5/21/18. Text Only Entry (rbjsec.) (Entered: 05/21/2018)
05/22/2018	134	WITHDRAWN - MOTION to Clarify re 125 Discovery Hearing by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Declaration of Chris Wellman, # 2 Exhibit A, # 3 Exhibit B, # 4 Exhibit C, # 5 Exhibit D, # 6 Exhibit E)(Wellman, Scott) Modified on 5/24/2018 to withdraw pursuant to 140 Order (dkals,). (Entered: 05/22/2018)
05/22/2018	135	BRIEF in Opposition to 131 MOTION for Summary Judgment <i>Under Fed. R. Civ. P. 56 for Plaintiffs Failure to File a Proper Certificate of Review</i> filed by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Declaration of Scott Wellman, # 2 Exhibit 1)(Wellman, Scott) (Entered: 05/22/2018)
05/22/2018	136	AMENDED COMPLAINT <i>CORRECTED THIRD</i> against Claud Bays, Michael Bonnet, William Cooper, Jeffrey Freeman, Steven Hake, Lutheran Hospital Association of the San Luis Valley, USA, filed by Patrice Stephenson-Licciardi, Christian Licciardi.(Wellman, Scott) (Entered: 05/22/2018)
05/23/2018	137	MOTION to Withdraw Document re 134 MOTION to Clarify re 125 Discovery Hearing by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Wellman, Scott) (Entered: 05/23/2018)
05/23/2018	138	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES:re: 134 MOTION to Clarify re 125 Discovery Hearing filed by attorneyChris Andrew Wellman.The s/signature did not match the filers name on the account for which the login and password are registered. DO NOT REFILE THE DOCUMENT. Action to take - future documents must be filed pursuant to D.C.COLO.LCivR 5.1(a) and 4.3(c) of the Electronic Case Filing Procedures (Civil cases).(Text Only Entry) (dkals,) (Entered: 05/23/2018)
05/24/2018	139	ORDER granting 137 Motion to Withdraw Document. By Judge R. Brooke Jackson on 5/24/18. Text Only Entry (rbjsec.) (Entered: 05/24/2018)
05/24/2018	140	ORDER withdrawing 134 Motion to Clarify. See ECF Nos. 137 and 139. By Judge R. Brooke Jackson on 5/24/18. Text Only Entry (rbjsec.) (Entered: 05/24/2018)
05/24/2018	141	Amended MOTION to Clarify re 125 Discovery Hearing by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Declaration of Chris Wellman, # 2 Exhibit A, # 3 Exhibit B, # 4 Exhibit C, # 5 Exhibit D, # 6 Exhibit E, # 7 Exhibit F) (Wellman, Chris) (Entered: 05/24/2018)
05/25/2018	142	ERRATA re 141 Amended MOTION to Clarify re 125 Discovery Hearing by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Exhibit F)(Wellman, Chris) (Entered: 05/25/2018)
05/25/2018	143	REPLY to Response to 131 MOTION for Summary Judgment <i>Under Fed. R. Civ. P. 56 for Plaintiffs Failure to File a Proper Certificate of Review</i> filed by Defendants William Cooper, Lutheran Hospital Association of the San Luis Valley. (Attachments: # 1 Exhibit A - Emails Between Homiak & Wellman (May 23, 2018), # 2 Exhibit B - Plaintiffs Motion to Amend Scheduling Order, # 3 Exhibit C - Plaintiff's Motion for Leave to File New Third Amended Complaint)(Homiak, Kevin) (Entered: 05/25/2018)

05/30/2018	144	ORDER granting 141 Amended MOTION to Clarify re 125 Discovery Hearing. The Court does not have the email or a transcript of the May 8, 2018 discovery dispute hearing. My recollection is that there was an expert report by a nurse retained by one or more defendant that was plainly insufficient under Rule 26((a)(2)(B)), and I probably used that as an example. The Court's expectation for any retained expert is that his or her opinions be stated in a report compliant with that rule. That report, authored by a nurse who might not be familiar with the rule, was insufficient. I probably gave the parties until May 31, 2018 to supplement their testifying retained experts' reports, if necessary, to comply with the rule. I probably did this in the spirit of wanting both sides in this important case to be able to present their experts, and the jury to be able to hear from their experts, without exclusion because of an unnecessary failure to provide a sufficient report. I might have said (and if not I say it now) that the report would be the limit of what the expert could testify to, and if the opposing side takes a deposition of the expert and elicits new opinions not substantively set forth in the report, the party who hired the expert could not use the deposition testimony as an excuse to have the expert go beyond his or her report at trial. The Court suggests that the parties wait until after any and all supplements to the experts' reports are provided, i.e., to the conclusion of the business day on May 31, 2018. If the party has provided a report and/or a supplemental report for an expert, then the Court assumes that the party at least tentatively plans to call that expert at trial. The opposing party may then decide which, if any, of the experts they wish to depose. The Court will sua sponte extend the discovery cutoff to June 29, 2018 so that expert depositions can be scheduled to the reasonable convenience of the lawyers and the experts. By Judge R. Brooke Jackson on 5/30/18. Text Only Entry (rbjsec.) (Entered: 05/30/2018)
06/05/2018	145	ANSWER to 136 Amended Complaint, <i>Corrected Third</i> by William Cooper, Lutheran Hospital Association of the San Luis Valley.(Homiak, Kevin) (Entered: 06/05/2018)
06/05/2018	146	ANSWER to 136 Amended Complaint, <i>Corrected Third</i> by Claud Bays, Michael Bonnet.(Homiak, Kevin) (Entered: 06/05/2018)
06/05/2018	147	ANSWER to 136 Amended Complaint, by USA.(Licht-Steenfat, Jacob) (Entered: 06/05/2018)
06/06/2018	148	ANSWER to 136 Amended Complaint, by Jeffrey Freeman.(Bailey, Katherine) (Entered: 06/06/2018)
06/07/2018	149	<i>Defendant Steven Hake, M.D.'s</i> ANSWER to 136 Amended Complaint, <i>Affirmative Defenses and Jury Demand</i> by Steven Hake.(Hensen, Stephen) (Entered: 06/07/2018)
06/07/2018	150	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES:re: 149 Answer to Amended Complaint filed by attorneyStephen Jerome Hensen.Attorney or pro se has used an incorrect signature format in violation of D.C.COLO.LCivR 5.1(a) and 4.3(a) of the Electronic Case Filing Procedures (Civil cases). DO NOT REFILE THE DOCUMENT. (Text Only Entry) (dkals,) (Entered: 06/07/2018)
06/07/2018	151	MOTION for Summary Judgment <i>regarding Statute of Limitations as to Defendants Bays and Bonnet</i> by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Declaration of Scott Wellman, # 2 Exhibit A, # 3 Exhibit B, # 4 Exhibit C, # 5 Declaration of Patrice Stephenson-Licciardi, # 6 Exhibit D (conventionally submitted), # 7 Exhibit E (conventionally submitted), # 8 Exhibit F (conventionally submitted)) (Wellman, Scott) (Entered: 06/07/2018)
06/08/2018	152	Joint MOTION for Extension of Time to <i>File Dispositive Motions</i> by Consol Defendant USA. (Carter, William) (Entered: 06/08/2018)

06/08/2018	153	MOTION for Sanctions <i>Motion For Dismissal Pursuant To The Courts Inherent Authority To Impose Sanctions For Willful Misconduct</i> by Defendants William Cooper, Lutheran Hospital Association of the San Luis Valley. (Attachments: # 1 Exhibit A - Pl.'s Initial Disclosures, # 2 Exhibit B - Text Messages - Reduced, # 3 Exhibit C - SLV-02886-2929 (Savannah Kurkowski-2015M00286) - Reduced, # 4 Exhibit D - Deposition of Sean Finley (3-23-18), # 5 Exhibit E - SLVH Defendants_ First Set of Interrogatories, Requests for Production, and Requests for, # 6 Exhibit F - Pl's Resp-Dr. Cooper 12-11-17, # 7 Exhibit G - Deposition of Alex Licciardi (2-8-18)(Excerpts), # 8 Exhibit H - Deposition of Patrice Stephenson-Licciardi (3-13-18), # 9 Exhibit I - Deposition of Shaye Olander, # 10 Exhibit J - Deposition of Kyle Carpenter, # 11 Exhibit K - Decl. of Kevin Homiak) (Homiak, Kevin) (Entered: 06/08/2018)
06/08/2018	156	Conventionally Submitted Material: Exhibit to 151 MOTION for Summary Judgment on 1 Cruzier Glide flash drive by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. Text Only Entry (dkals,) Location of stored items, oversized area A-2-5 (jsalz,). (Entered: 06/12/2018)
06/11/2018	154	TRANSCRIPT of Discovery Conference held on May 8, 2018 before Judge Jackson. Pages: 1-18. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 06/11/2018)
06/12/2018	155	ORDER granting 152 Joint MOTION for Extension of Time to File Dispositive Motions. Dispositive Motions are due by 7/6/2018. By Judge R. Brooke Jackson on 6/12/18. Text Only Entry (rbjsec.) (Entered: 06/12/2018)
06/15/2018	157	BRIEF in Opposition to 153 MOTION for Sanctions <i>Motion For Dismissal Pursuant To The Courts Inherent Authority To Impose Sanctions For Willful Misconduct</i> filed by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Declaration of Chris Wellman, # 2 Exhibit A, # 3 Exhibit B, # 4 Exhibit C, # 5 Exhibit D, # 6 Declaration of Patrice Licciardi)(Wellman, Scott) (Entered: 06/15/2018)
06/19/2018	158	RESPONSE to 151 MOTION for Summary Judgment <i>regarding Statute of Limitations as to Defendants Bays and Bonnet</i> filed by Defendants Claud Bays, Michael Bonnet. (Attachments: # 1 Exhibit A - J. Licciardi Dep., # 2 Exhibit B - Homiak Decl., # 3 Exhibit C - SLV Record, # 4 Exhibit D - Op Report, # 5 Exhibit E - SLV Rec Req, # 6 Exhibit F - Signed Release, # 7 Exhibit G - Appl for Appt of GAL, # 8 Exhibit H - Order Granting GAL, # 9 Exhibit I - Scheduling Order, # 10 Exhibit J - Docket, # 11 Exhibit K - Stephenson-Licciardi Decl, # 12 Exhibit L - P. Licciardi Dep., # 13 Exhibit M - Summons Email)(Homiak, Kevin) (Entered: 06/19/2018)
06/20/2018	159	MOTION for Summary Judgment <i>on Statute of Limitations Defense</i> by Defendant Claud Bays. (Attachments: # 1 Proposed Order (PDF Only), # 2 Exhibit A - Deposition of Joe Licciardi, # 3 Exhibit B - SLV Medical Records, # 4 Exhibit C - McAuliffe Recordings (11-12-17), # 5 Exhibit D - Audio recording of Kyle Phillips (11-13-17), # 6 Exhibit E - J. Licciardi - Facebook (12-3-15), # 7 Exhibit F - J. Licciardi Facebook Post (12.8.15) at SLV-2081, # 8 Exhibit G - Third Amended Complaint (4-18-18), # 9 Exhibit H - Signed Records Request - San Luis Valley - 1-19-16, # 10 Exhibit I - SLVH Records Request Log, # 11 Exhibit J - Declaration of TS-HIM-ROI-6-20-18, # 12 Exhibit K - Facebook

		Post (1-22-16), # 13 Exhibit L - Signed Release - 02-03-16, # 14 Exhibit M - A. Licciardi Facebook Post with Comments - 04-13-16, # 15 Exhibit N - Plaintiff_s Certificate of Review Pursuant to CRS Section 13-20-602 (3-15-17), # 16 Exhibit O - Efaw email (4-17-17), # 17 Exhibit P - Scheduling Order (5-9-17), # 18 Exhibit Q - Case Management Statement by Plaintiff - 05-16-17, # 19 Exhibit R - Homiak Decl., # 20 Exhibit S - Plaintiff_s Motion for Leave to File Second Amended Complaint (8-29-17), # 21 Exhibit T - Plaintiff's Motion to Amend Scheduling Order (8-14-17), # 22 Exhibit U - January 4 Email from Wellman to Homiak, # 23 Exhibit V - Plaintiff_s Amended Motion to Extend Discovery re Depositions (1-25-18))(Homiak, Kevin) (Entered: 06/20/2018)
06/21/2018	160	MOTION for Summary Judgment <i>on Statute of Limitations Defense</i> by Defendant Michael Bonnet. (Attachments: # 1 Exhibit Ex. A - Deposition of Michael Bonnet, P.A. (3-10-18), # 2 Exhibit Ex. B - Deposition of Claud Bays, M.D. (3-9-18), # 3 Exhibit Ex. C - Excerpts San Luis Valley Records, # 4 Exhibit Ex. D - Deposition of William Cooper, M.D. (11-15-17), # 5 Exhibit Ex. E - January 4 Email from Wellman to Homiak, # 6 Exhibit Ex. F - Plaintiff's Amended Motion to Extend Discovery re Depositions (1-25-18), # 7 Exhibit Ex. G - Homiak Declaration, # 8 Proposed Order (PDF Only) Proposed Order)(Homiak, Kevin) (Entered: 06/21/2018)
06/22/2018	161	REPLY to Response to 151 MOTION for Summary Judgment <i>regarding Statute of Limitations as to Defendants Bays and Bonnet</i> filed by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Declaration of Chris Wellman, # 2 Exhibit 1, # 3 Exhibit 2, # 4 Exhibit 3, # 5 Exhibit 4, # 6 Exhibit 5, # 7 Exhibit 6) (Wellman, Scott) (Entered: 06/22/2018)
06/24/2018	162	REPLY to Response to 153 MOTION for Sanctions <i>Motion For Dismissal Pursuant To The Courts Inherent Authority To Impose Sanctions For Willful Misconduct</i> filed by Defendants William Cooper, Lutheran Hospital Association of the San Luis Valley. (Attachments: # 1 Exhibit A - Panagos Supp. Rpt. (May 31, 2018), # 2 Exhibit B - LeRoux Rpt. (Apr. 13, 2018), # 3 Exhibit C - P. Licciardi Dep. (Mar. 13, 2018), # 4 Exhibit D - Email from Wellman to Homiak (June 13, 2018), # 5 Exhibit E - Email from Wellman to Homiak (June 1, 2018))(Homiak, Kevin) (Entered: 06/24/2018)
06/28/2018	163	SUPPLEMENT/AMENDMENT to 135 Brief in Opposition to Motion, <i>for Summary Judgment for Failure to File Certificate of Review- Unopposed</i> by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Wellman, Chris) (Entered: 06/28/2018)
07/02/2018	164	Unopposed MOTION to Amend/Correct/Modify (<i>Motion to File an Amended Designation of Non-Parties at Fault</i>) by Defendants William Cooper, Lutheran Hospital Association of the San Luis Valley. (Attachments: # 1 Exhibit A - Amended Designation of Non-Parties at Fault)(Homiak, Kevin) (Entered: 07/02/2018)
07/03/2018	165	ORDER granting 164 Unopposed MOTION to Amend/Correct/Modify (Motion to File an Amended Designation of Non-Parties at Fault). By Judge R. Brooke Jackson on 7/3/18. Text Only Entry (rbjsec.) (Entered: 07/03/2018)
07/03/2018	166	MOTION for Summary Judgment <i>on Plaintiff's Negligence Claim Against SLVH</i> by Defendant Lutheran Hospital Association of the San Luis Valley. (Attachments: # 1 Proposed Order (PDF Only) Regarding Motion for Summary Judgment, # 2 Exhibit A - Dr. Claud Bays Dep. (3.9.18), # 3 Exhibit B - C. Licciardi's SLVH Medical Records, # 4 Exhibit C - PA Bonnet's Dep. (3.10.18), # 5 Exhibit D - Gerwin v. Benner, # 6 Exhibit E - Snyder v. Goehring, # 7 Exhibit F - D. Pitcher Rep. (4.27.18))(Homiak, Kevin) (Entered: 07/03/2018)
07/12/2018	167	MOTION to Strike <i>in Part Supplemental Report of Edward J. Hepworth, MD</i> by Consol Defendant USA. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit, # 4 Exhibit, # 5

		Exhibit, # 6 Exhibit, # 7 Exhibit, # 8 Exhibit, # 9 Exhibit)(Carter, William) (Entered: 07/12/2018)
07/13/2018	168	BRIEF in Opposition to 160 MOTION for Summary Judgment <i>on Statute of Limitations Defense</i> , 159 MOTION for Summary Judgment <i>on Statute of Limitations Defense</i> filed by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Wellman, Scott) (Entered: 07/13/2018)
07/13/2018	169	STRICKEN - DECLARATION of <i>Scott Wellman</i> regarding Brief in Opposition to Motion, 168 by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Exhibit B in support of Plaintiffs Opposition, # 2 Exhibit C in support of Plaintiffs Opposition, # 3 Exhibit D in support of Plaintiffs Opposition, # 4 Exhibit E in support of Plaintiffs Opposition)(Wellman, Scott) Modified on 7/18/2018 to strike pursuant to 174 Order (dkals,). (Entered: 07/13/2018)
07/13/2018	170	DECLARATION of <i>Joseph Licciardi</i> regarding Brief in Opposition to Motion, 168 by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Exhibit A in support of Plaintiffs Opposition)(Wellman, Scott) (Entered: 07/13/2018)
07/13/2018	171	DECLARATION of <i>Alexandria Licciardi</i> regarding Brief in Opposition to Motion, 168 by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Wellman, Scott) (Entered: 07/13/2018)
07/13/2018	175	RESPONSE to 160 MOTION for Summary Judgment <i>on Statute of Limitations Defense</i> , 159 MOTION for Summary Judgment <i>on Statute of Limitations Defense</i> filed by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi pursuant to 174 Order. (dkals,) (Entered: 07/18/2018)
07/16/2018	172	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES:re: 169 Declaration, filed by attorney Scott W. Wellman. Attorney or pro se has used an incorrect signature format in violation of D.C.COLO.LCivR 5.1(a) and 4.3(a) of the Electronic Case Filing Procedures (Civil cases). DO NOT REFILE THE DOCUMENT. (Text Only Entry) (dkals,) (Entered: 07/16/2018)
07/16/2018	173	MOTION for Leave to <i>File Untimely Response</i> 170 Declaration, 168 Brief in Opposition to Motion, 169 Declaration, 171 Declaration by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Declaration of Scott Wellman, # 2 Declaration of Sara Wilhoit, # 3 Proposed Document Plaintiffs Opposition, # 4 Proposed Document Declaration of Scott Wellman support of Plaintiffs Opposition, # 5 Proposed Document Exhibit B in support of Plaintiffs Opposition, # 6 Proposed Document Exhibit C in support of Plaintiffs Opposition, # 7 Proposed Document Exhibit D in support of Plaintiffs Opposition, # 8 Proposed Document Exhibit E in support of Plaintiffs Opposition, # 9 Proposed Document Declaration of Joe Licciardi in support of Plaintiffs Opposition, # 10 Proposed Document Exhibit A in support of Plaintiffs Opposition, # 11 Proposed Document Declaration of Alexandria Licciardi in support of Plaintiffs Opposition)(Wellman, Scott) (Entered: 07/16/2018)
07/17/2018	174	ORDER granting 173 MOTION for Leave to File Untimely Response. Please never again blame a missed deadline on a paralegal, a secretary, or anyone else. The responsibility lies with lead counsel. The Court requests that the Clerk of Court's office strike the original response at ECF No. 169 and file the updated response at ECF No. 173-3 with a filing date of July 13, 2018. By Judge R. Brooke Jackson on 7/17/18. Text Only Entry (rbjsec.) (Entered: 07/17/2018)
07/19/2018	176	WAIVER OF SERVICE Returned Executed by Patrice Stephenson-Licciardi. Claud Bays waiver sent on 6/28/2018, answer due 8/27/2018. (Wellman, Scott) (Entered: 07/19/2018)

07/19/2018	177	WAIVER OF SERVICE Returned Executed by Patrice Stephenson-Licciardi. Michael Bonnet waiver sent on 6/28/2018, answer due 8/27/2018. (Wellman, Scott) (Entered: 07/19/2018)
07/21/2018	178	BRIEF in Opposition to 166 MOTION for Summary Judgment <i>on Plaintiff's Negligence Claim Against SLVH</i> filed by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Declaration of Andrew Wellman, # 2 Exhibit A, # 3 Exhibit B, # 4 Exhibit C, # 5 Exhibit D, # 6 Exhibit E, # 7 Exhibit F, # 8 Exhibit G, # 9 Exhibit H, # 10 Exhibit I, # 11 Exhibit J, # 12 Exhibit K, # 13 Exhibit L)(Wellman, Scott) (Entered: 07/21/2018)
07/24/2018	179	MOTION to Exclude <i>Expert Testimony of Edward J. Hepworth, MD and Thomas McIlraith, MD pursuant to Rule 702</i> by Consol Defendant USA. (Attachments: # 1 Exhibit Ex. 1)(Carter, William) (Entered: 07/24/2018)
07/25/2018	180	NOTICE of Entry of Appearance by Ellen Elizabeth Shea Herzog on behalf of Claud Bays, Michael BonnetAttorney Ellen Elizabeth Shea Herzog added to party Claud Bays(pty:dft), Attorney Ellen Elizabeth Shea Herzog added to party Michael Bonnet(pty:dft) (Herzog, Ellen) (Entered: 07/25/2018)
07/27/2018	181	MINUTE ORDER re: 179 MOTION to Expert Testimony of Edward J. Hepworth, MD and Thomas McIlraith, MD pursuant to Rule 702. The Court requests a response be filed by August 1, 2018. By Judge R. Brooke Jackson on 7/27/18. Text Only Entry (rbjsec.) (Entered: 07/27/2018)
07/27/2018	182	MOTION to Clarify <i>August 28, 2017 Order</i> by Defendants Claud Bays, Michael Bonnet, William Cooper, Lutheran Hospital Association of the San Luis Valley. (Attachments: # 1 Exhibit Ex. A - Application and Order Granting Appointment of GAL 04.28.17, # 2 Exhibit Ex. B - Scheduling Order (5-9-17), # 3 Exhibit Ex. C - Stephenson-Licciardi Decl., # 4 Exhibit Ex. D - Licciardi, P Deposition (3.13.18), # 5 Exhibit Ex. E - Bays and Bonnet's Response to 151 Motion for SJ re SOL (6-19-18), # 6 Exhibit Ex. F - Email from Herzog to Wellman (Jun. 29, 2018), # 7 Proposed Order (PDF Only) Proposed Order) (Homiak, Kevin) (Entered: 07/27/2018)
07/27/2018	183	REPLY to Response to 160 MOTION for Summary Judgment <i>on Statute of Limitations Defense</i> , 159 MOTION for Summary Judgment <i>on Statute of Limitations Defense</i> filed by Defendants Claud Bays, Michael Bonnet. (Attachments: # 1 Exhibit A - Plaintiff's Unopposed Motion to Amend Second Amended Complaint (3-26-18))(Homiak, Kevin) (Entered: 07/27/2018)
07/30/2018	184	MOTION to Exclude <i>Expert Opinion of Scott Kush pursuant to Federal Rules of Evidence 702</i> by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Declaration of Scott Wellman, # 2 Exhibit A, # 3 Exhibit B, # 4 Exhibit C, # 5 Exhibit D, # 6 Exhibit E, # 7 Exhibit F)(Wellman, Scott) (Entered: 07/30/2018)
08/01/2018	185	BRIEF in Opposition to 179 MOTION to Exclude <i>Expert Testimony of Edward J. Hepworth, MD and Thomas McIlraith, MD pursuant to Rule 702</i> filed by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 declaration of Andrew Wellman, # 2 Exhibit A, # 3 Exhibit B, # 4 Exhibit C, # 5 Exhibit D)(Wellman, Scott) (Entered: 08/01/2018)
08/01/2018	186	BRIEF in Opposition to 167 MOTION to Strike <i>in Part Supplemental Report of Edward J. Hepworth, MD</i> filed by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Wellman, Scott) (Entered: 08/01/2018)
08/02/2018	187	MINUTE ORDER re: 179 MOTION to Exclude Expert Testimony of Edward J. Hepworth, MD and Thomas McIlraith, MD pursuant to Rule 702 and 184 MOTION to Exclude Expert Opinion of Scott Kush pursuant to Federal Rules of Evidence 702. The

		Court has reviewed the motion and response regarding defendants' effort to exclude the testimony of Drs. Hepworth and McIlraith. ECF Nos. 179 and 185. The issue is now is moot with respect to Dr. McIlraith. The Court's impression from the papers is that Dr. Hepworth is qualified to provided the kind of testimony described in the response. If, after considering the response and this minute order, defendants continue to believe that there is a legitimate Rule 702 issue concerning Dr. Hepworth, they may set an in-court, evidentiary, pretrial hearing, on a date available on the Court's docket. The Court has also reviewed plaintiff's Rule 702 motion concerning Dr. Kush. ECF No. 184. Defendants have not yet responded, as the motion was just filed. However, given what plaintiff relates about Dr. Kush's background, and the nature of his testimony (which is based essentially on a hypothetical assumption as to his present condition and limitations on his future activity), my impression is that he is probably qualified to express a life expectancy opinion. If plaintiffs still disagree, they may set an in-court, evidentiary, pretrial hearing. The Court asks counsel not to consume the Court's time or their client's money on "just because" Daubert motions. Set a hearing only if you sincerely believe that it is one of the rare occasions when a designated expert's testimony is either irrelevant or unreliable. By Judge R. Brooke Jackson on 8/2/18. Text Only Entry (rbjsec.) (Entered: 08/02/2018)
08/02/2018	188	ERRATA re 186 Brief in Opposition to Motion <i>TO STRIKE IN PART SUPPLEMENTAL REPORT OF EDWARD J. HEPWORTH M.D</i> by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Exhibit 6, # 7 Exhibit 7, # 8 Exhibit 8, # 9 Exhibit 9, # 10 Exhibit 10, # 11 Exhibit 11)(Wellman, Scott) (Entered: 08/02/2018)
08/06/2018	189	REPLY to Response to 166 MOTION for Summary Judgment <i>on Plaintiff's Negligence Claim Against SLVH</i> filed by Defendant Lutheran Hospital Association of the San Luis Valley. (Attachments: # 1 Exhibit Ex. A - McIlraith Reports (4.13.18 & 4.27.18), # 2 Exhibit Ex. B - Rosen Report (4.13.18), # 3 Exhibit Ex. C - Rosen Deposition (5.30.18), # 4 Exhibit Ex. D - Press Deposition (5.25.18))(Homiak, Kevin) (Entered: 08/06/2018)
08/13/2018	190	MOTION in Limine <i>NO. 1</i> by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Declaration of Chris Wellman, # 2 Exhibit A, # 3 Exhibit B, # 4 Exhibit C, # 5 Exhibit D)(Wellman, Chris) (Entered: 08/13/2018)
08/13/2018	191	MOTION in Limine <i>NO. 2</i> by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Declaration of Chris Wellman, # 2 Exhibit A, # 3 Exhibit B, # 4 Exhibit C, # 5 Exhibit D, # 6 Exhibit E, # 7 Exhibit F)(Wellman, Chris) (Entered: 08/13/2018)
08/13/2018	192	MOTION in Limine <i>NO. 3</i> by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Declaration of Chris Wellman, # 2 Exhibit A, # 3 Exhibit B, # 4 Exhibit C, # 5 Exhibit D)(Wellman, Chris) (Entered: 08/13/2018)
08/13/2018	193	MOTION in Limine <i>NO. 4</i> by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Declaration of Chris Wellman, # 2 Exhibit A)(Wellman, Chris) (Entered: 08/13/2018)
08/13/2018	194	MOTION in Limine <i>NO. 5</i> by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Declaration of Chris Wellman, # 2 Exhibit A, # 3 Exhibit B)(Wellman, Chris) (Entered: 08/13/2018)
08/13/2018	195	MOTION in Limine <i>NO. 6</i> by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Declaration of Chris Wellman, # 2 Exhibit A)(Wellman, Chris) (Entered: 08/13/2018)
08/13/2018	196	MOTION in Limine <i>NO. 7</i> by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Wellman, Chris) (Entered: 08/13/2018)

08/13/2018	197	MOTION in Limine <i>NO. 8</i> by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Declaration of Chris Wellman, # 2 Exhibit A, # 3 Declaration of Luciann Rosen)(Wellman, Chris) (Entered: 08/13/2018)
08/13/2018	198	MOTION in Limine <i>NO.9</i> by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Declaration of Chris Wellman)(Wellman, Chris) (Entered: 08/13/2018)
08/13/2018	199	MOTION to Strike <i>Expert Report of Clint Anderson</i> by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Declaration of Chris Wellman, # 2 Exhibit A)(Wellman, Chris) (Entered: 08/13/2018)
08/14/2018	200	Joint MOTION for Order to <i>Request for Judicial Notice</i> by Defendants Claud Bays, Michael Bonnet, William Cooper, Jeffrey Freeman, Steven Hake, Lutheran Hospital Association of the San Luis Valley. (Attachments: # 1 Exhibit A - CA SAC)(Homiak, Kevin) (Entered: 08/14/2018)
08/14/2018	201	BRIEF in Opposition to 200 Joint MOTION for Order to <i>Request for Judicial Notice</i> filed by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Wellman, Chris) (Entered: 08/14/2018)
08/14/2018	202	MOTION in Limine to <i>Exclude Opinions from Plaintiff's Hospitalist Expert Regarding the Standard of Care for a Neurologist</i> by Defendant William Cooper. (Attachments: # 1 Exhibit A - McIlraith, MD Deposition (5.9.18))(Homiak, Kevin) (Entered: 08/14/2018)
08/14/2018	203	MOTION in Limine to <i>Exclude Evidence Regarding Emergency Physician Dr. Gerhard Senula</i> by Defendants Claud Bays, Michael Bonnet, William Cooper, Lutheran Hospital Association of the San Luis Valley. (Homiak, Kevin) (Entered: 08/14/2018)
08/15/2018	204	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES:re: 201 Brief in Opposition to Motion filed by attorney Scott W. Wellman. The s/signature did not match the filer's name on the account for which the login and password are registered. DO NOT REFILE THE DOCUMENT. Action to take - future documents must be filed pursuant to D.C.COLO.LCivR 5.1(a) and 4.3(c) of the Electronic Case Filing Procedures (Civil cases).(Text Only Entry) (dkals,) (Entered: 08/15/2018)
08/15/2018	205	REPLY to Response to 167 MOTION to Strike <i>in Part Supplemental Report of Edward J. Hepworth, MD</i> filed by Consol Defendant USA. (Carter, William) (Entered: 08/15/2018)
08/15/2018	206	ORDER denying 153 Motion for Sanctions; denying 190 Motion in Limine; granting in part and denying in part 191 Motion in Limine; granting in part and denying in part 194 Motion in Limine; granting 195 Motion in Limine; denying 196 Motion in Limine; granting in part and denying in part 197 Motion in Limine by Judge R. Brooke Jackson on 8/15/18. (jdyne,) (Entered: 08/15/2018)
08/16/2018	207	BRIEF in Opposition to 203 MOTION in Limine to <i>Exclude Evidence Regarding Emergency Physician Dr. Gerhard Senula</i> filed by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Wellman, Scott) (Entered: 08/16/2018)
08/16/2018	208	COURTROOM MINUTES/MINUTE ENTRY for Trial Preparation Conference proceedings held before Judge R. Brooke Jackson on 8/16/2018. Court Reporter: Sarah Mitchell. (babia) Modified on 8/17/2018 (babia). (Entered: 08/17/2018)
08/20/2018	209	BRIEF <i>PLAINTIFFS BRIEF REGARDING RESTATEMENT (SECOND) OF TORTS §457</i> by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Wellman, Scott) (Entered: 08/20/2018)
08/20/2018	210	ERRATA re 209 Brief by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Exhibit A)(Wellman, Scott) (Entered: 08/20/2018)

08/21/2018	211	ERRATA re 209 Brief, 210 Errata by Plaintiff Christian Licciardi. (Wellman, Scott) (Entered: 08/21/2018)
08/22/2018	212	NOTICE of Objection to Rule 39 Advisory Jury by Consol Defendant USA (Carter, William) (Entered: 08/22/2018)
08/22/2018	213	REPLY to Response to 203 MOTION in Limine to Exclude Evidence Regarding Emergency Physician Dr. Gerhard Senula filed by Defendants Claud Bays, Michael Bonnet, William Cooper, Lutheran Hospital Association of the San Luis Valley. (Homiak, Kevin) (Entered: 08/22/2018)
08/22/2018	214	RESPONSE to 199 MOTION to Strike Expert Report of Clint Anderson filed by Defendant Steven Hake. (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit Exhibit B, # 3 Exhibit Exhibit C, # 4 Exhibit Exhibit D)(Hensen, Stephen) (Entered: 08/22/2018)
08/23/2018	215	RESPONSE to 199 MOTION to Strike Expert Report of Clint Anderson filed by Defendant Steven Hake. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D)(Hensen, Stephen) (Entered: 08/23/2018)
08/23/2018	216	RESPONSE to 193 MOTION in Limine NO. 4 filed by Consol Defendant USA. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C)(Carter, William) (Entered: 08/23/2018)
08/24/2018	217	TRANSCRIPT of Trial Preparation Conference held on August 16, 2018 before Judge Jackson. Pages: 1-110. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 08/24/2018)
08/24/2018	218	REPLY to Response to 200 Joint MOTION for Order to Request for Judicial Notice filed by Defendants Claud Bays, Michael Bonnet, William Cooper, Jeffrey Freeman, Steven Hake, Lutheran Hospital Association of the San Luis Valley. (Homiak, Kevin) (Entered: 08/24/2018)
08/24/2018	219	REPLY to Response to 182 MOTION to Clarify August 28, 2017 Order Regarding the Appointment of Patrice Stephenson-Licciardi as Christian Licciardi's GAL filed by Defendants Claud Bays, Michael Bonnet, William Cooper, Lutheran Hospital Association of the San Luis Valley. (Homiak, Kevin) (Entered: 08/24/2018)
08/24/2018	220	REPLY to Response to 199 MOTION to Strike Expert Report of Clint Anderson filed by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Exhibit A) (Wellman, Chris) (Entered: 08/24/2018)
08/28/2018	221	RESPONSE to 209 Brief Regarding Plaintiff's Proposed Jury Instruction on Section 457 of Restatement (Second) of Torts by Defendants Claud Bays, Michael Bonnet, William Cooper, Lutheran Hospital Association of the San Luis Valley. (Homiak, Kevin) (Entered: 08/28/2018)
08/29/2018	222	REPLY to Response to 193 MOTION in Limine NO. 4 filed by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Declaration of Chris Wellman, # 2 Exhibit A, # 3 Declaration of Joe Licciardi)(Wellman, Chris) (Entered: 08/29/2018)

08/31/2018	<u>223</u>	RESPONSE to <u>192</u> MOTION in Limine <i>NO. 3</i> filed by Defendants Claud Bays, Michael Bonnet, William Cooper, Lutheran Hospital Association of the San Luis Valley. (Attachments: # <u>1</u> Exhibit Ex. A - Plaintiff's LCP)(Homiak, Kevin) (Entered: 08/31/2018)
08/31/2018	<u>224</u>	RESPONSE to <u>198</u> MOTION in Limine <i>NO.9</i> filed by Defendants Claud Bays, Michael Bonnet, William Cooper, Lutheran Hospital Association of the San Luis Valley. (Attachments: # <u>1</u> Exhibit Ex. A - McIlraith Report, # <u>2</u> Exhibit Ex. B - McIlraith Rebuttal, # <u>3</u> Exhibit Ex. C - McIlraith Deposition, # <u>4</u> Exhibit Ex. D - Gill Report, # <u>5</u> Exhibit Ex. E - Gill Deposition, # <u>6</u> Exhibit Ex. F - CA Case Management Statement by Plaintiff)(Homiak, Kevin) (Entered: 08/31/2018)
08/31/2018	<u>225</u>	ORDER denying <u>131</u> Motion for Summary Judgment; granting <u>151</u> Motion for Summary Judgment; denying <u>159</u> Motion for Summary Judgment; denying <u>160</u> Motion for Summary Judgment; granting <u>166</u> Motion for Summary Judgment; denying <u>167</u> Motion to Strike ; denying <u>179</u> Motion to Exclude; granting <u>182</u> Motion to Clarify; denying <u>184</u> Motion to Exclude; granting <u>192</u> Motion in Limine; granting <u>193</u> Motion in Limine; denying <u>198</u> Motion in Limine; denying <u>199</u> Motion to Strike ; granting <u>200</u> Motion for Order; granting <u>202</u> Motion in Limine; denying <u>203</u> Motion in Limine by Judge R. Brooke Jackson on 8/31/18. (jdyne,) (Entered: 08/31/2018)
09/07/2018	<u>226</u>	Stipulated MOTION to Dismiss <i>With Prejudice</i> by Defendant Jeffrey Freeman. (Bailey, Katherine) (Entered: 09/07/2018)
09/07/2018	<u>227</u>	Exhibit List by Defendants Claud Bays, Michael Bonnet, William Cooper, Steven Hake, Consol Defendant USA. (Homiak, Kevin) (Entered: 09/07/2018)
09/07/2018	<u>228</u>	Witness List <i>Defendants' Final Joint List for Trial</i> by Defendants Claud Bays, Michael Bonnet, William Cooper, Steven Hake, Consol Defendant USA. (Homiak, Kevin) (Entered: 09/07/2018)
09/07/2018	<u>229</u>	Witness List <i>for Trial</i> by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Wellman, Scott) (Entered: 09/07/2018)
09/07/2018	230	ORDER granting <u>226</u> Motion to Dismiss by Judge R. Brooke Jackson on 9/7/18. Text Only Entry (rbj) (Entered: 09/07/2018)
09/07/2018	<u>231</u>	Exhibit List <i>for trial</i> by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Wellman, Scott) (Entered: 09/07/2018)
09/10/2018	<u>232</u>	COURTROOM MINUTES/MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Jury Trial Day One held on 9/10/2018. Jury selected, preliminary instructions read, trial continued. Court Reporter: Sarah Mitchell. (jdyne,) (Entered: 09/10/2018)
09/10/2018	<u>233</u>	Preliminary Jury Instructions - read to jury(jdyne,) (Entered: 09/10/2018)
09/10/2018	<u>253</u>	ORDER regarding attendance fee by Judge R. Brooke Jackson on 9/10/18. (dkals,) (Entered: 10/09/2018)
09/11/2018	<u>234</u>	COURTROOM MINUTES/MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Jury Trial Day Two held on 9/11/2018. Openings given, evidence and testimony presented, trial continued. Court Reporter: Sarah Mitchell. (jdyne,) (Entered: 09/11/2018)
09/12/2018	<u>235</u>	COURTROOM MINUTES/MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Jury Trial Day Three held on 9/12/2018. Evidence and testimony presented, trial continued. Court Reporter: Sarah Mitchell. (Attachments: # <u>1</u> Juror question no. 1) (jdyne,) (Entered: 09/12/2018)

09/13/2018	236	COURTROOM MINUTES/MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Jury Trial Day Four held on 9/13/2018. Evidence and testimony presented, trial continued. Court Reporter: Sarah Mitchell. (jdyne,) (Entered: 09/13/2018)
09/14/2018	237	COURTROOM MINUTES/MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Jury Trial Day Five held on 9/14/2018. Evidence and testimony presented, trial continued. Court Reporter: Sarah Mitchell. (Attachments: # 1 Juror question No. 2) (jdyne,) (Entered: 09/14/2018)
09/17/2018	238	COURTROOM MINUTES/MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Jury Trial Day Six held on 9/17/2018. Evidence and testimony presented, trial continued. Court Reporter: Sarah Mitchell. (Attachments: # 1 Juror question No. 3) (jdyne,) (Entered: 09/17/2018)
09/18/2018	239	COURTROOM MINUTES/MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Jury Trial Day Seven held on 9/18/2018. Evidence and testimony presented, trial continued. Court Reporter: Sarah Mitchell. (Attachments: # 1 Juror question No. 4) (jdyne,) (Entered: 09/18/2018)
09/19/2018	240	COURTROOM MINUTES/MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Jury Trial Day Eight held on 9/19/2018. Evidence and testimony presented, trial continued. Court Reporter: Sarah Mitchell. (jdyne,) (Entered: 09/19/2018)
09/20/2018	241	COURTROOM MINUTES/MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Jury Trial Day Nine held on 9/20/2018. Evidence and testimony presented, trial continued. Court Reporter: Sarah Mitchell. (Attachments: # 1 Juror questions Nos. 5-7) (jdyne,) (Entered: 09/20/2018)
09/24/2018	242	COURTROOM MINUTES/MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Jury Trial Day Ten held on 9/24/2018. Evidence and testimony presented, trial continued. Court Reporter: Sarah Mitchell. (jdyne,) (Entered: 09/24/2018)
09/25/2018	243	STIPULATION of Dismissal of Party <i>Defendant United States of America</i> by Consol Defendant USA. (Carter, William) (Entered: 09/25/2018)
09/25/2018	244	COURTROOM MINUTES/MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Jury Trial Day Eleven held on 9/25/2018. Evidence and testimony presented, trial continued. Court Reporter: Sarah Mitchell. (jdyne,) (Entered: 09/25/2018)
09/26/2018	245	COURTROOM MINUTES/MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Jury Trial Day Twelve held on 9/26/2018. Evidence and testimony presented, evidence closed, trial continued. ORDERED: Lunch to be provided to jurors tomorrow and throughout deliberations. Court Reporter: Sarah Mitchell. (Attachments: # 1 Juror question no. 8) (jdyne,) (Entered: 09/26/2018)
09/27/2018	246	COURTROOM MINUTES/MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Jury Trial Day Thirteen completed on 9/27/2018. Closing arguments given, JURY VERDICT, see verdict for details. Court Reporter: Sarah Mitchell. (jdyne,) (Entered: 09/27/2018)
09/27/2018	247	Jury Instructions. (Attachments: # 1 Tendered and rejected, # 2 Tendered and rejected) (jdyne,) (Entered: 09/28/2018)
09/27/2018	249	Juror Strike Sheet - Unredacted - Level 3 - Viewable by Court Only. (jdyne,) (Entered: 09/28/2018)
09/28/2018	248	Juror Strike Sheet - redacted(jdyne,) (Entered: 09/28/2018)
09/28/2018	250	JURY VERDICT - redacted. (jdyne,) (Entered: 09/28/2018)

09/28/2018	251	Jury Verdict - Unredacted - Level 3 - Viewable by Court Only. (jdyne,) (Entered: 09/28/2018)
10/01/2018	252	FINAL JUDGMENT in favor of the defendants - Claud Bays, Michael Bonnet, Steven Hake, William Cooper and against the plaintiff - Patrice Stephenson-Licciardi by Clerk on 10/1/18. (jdyne,) (Entered: 10/01/2018)
10/15/2018	254	Proposed Bill of Costs by Defendant Steven Hake. (Attachments: # 1 Proposed Document Dr. Hake's Bill of Costs, # 2 Exhibit A, # 3 Exhibit B - Part 1, # 4 Exhibit B - Part 2, # 5 Exhibit C, # 6 Exhibit D, # 7 Exhibit E - Part 1, # 8 Exhibit E - Part 2, # 9 Exhibit E - Part 3, # 10 Exhibit E - Part 4, # 11 Exhibit E - Part 5, # 12 Exhibit F - Part 1, # 13 Exhibit F - Part 2, # 14 Exhibit F - Part 3, # 15 Exhibit G)(Hensen, Stephen) (Entered: 10/15/2018)
10/15/2018	255	Proposed Bill of Costs by Defendants Claud Bays, Michael Bonnet, William Cooper. (Attachments: # 1 Exhibit A - Bill of Costs Cover Sheet, # 2 Exhibit B - Itemized Spreadsheet of Costs, # 3 Exhibit C - Supporting Documentation (10-14-18) - Part1, # 4 Exhibit C - Supporting Documentation (10-14-18) - Part2, # 5 Exhibit C - Supporting Documentation (10-14-18) - Part3)(Homiak, Kevin) (Entered: 10/15/2018)
10/16/2018	256	NOTICE Regarding Bill of Costs Hearing Before the Clerk on Oct. 31, 2018 re: 255 Proposed Bill of Costs, 254 Proposed Bill of Costs. After initial review of the Proposed Bills of Costs and this case's procedural history, and due to the substantial amounts involved and potential length and complexity of issues of the case, the parties are directed to have lead counsel responsible for the bill of costs presentation, one for each side, appear in person for the hearing. Based on this requirement, if the parties wish to re-set the hearing, that is understandable. The parties are also required to submit paper copies of the proposed bills of costs (and any written objections over 10 pages) to the Clerk's Office no later than close of business by Oct. 24, 2018. The Clerk also encourages counsel to review previous taxations of costs, attached to this Notice, that provide guidance as to the Clerk's practices and principles in awarding costs, and to strongly foster and encourage the parties to settle. Entered by the Clerk. (ebutl) (Entered: 10/16/2018)
10/19/2018	257	OBJECTIONS to 255 Proposed Bill of Costs, 254 Proposed Bill of Costs, by Plaintiff Christian Licciardi. (Wellman, Scott) (Entered: 10/19/2018)
10/19/2018	258	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 257 Objections filed by attorney Scott W. Wellman.The document was scanned and not converted directly to portable document format (PDF). DO NOT REFILE THE DOCUMENT. Action to take - future documents must be filed pursuant to D.C.COLO.LCivR 5.1(a) and 1.3(f) of the Electronic Case Filing Procedures (Civil cases). (Text Only Entry) (dkals,) (Entered: 10/19/2018)
10/26/2018	259	MOTION for New Trial by Plaintiff Christian Licciardi. (Wellman, Scott) (Entered: 10/26/2018)
10/26/2018	260	DECLARATION of <i>Chris Wellman</i> by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Wellman, Scott) (Entered: 10/26/2018)
10/26/2018	261	DECLARATION of <i>Chris Wellman (Corrected)</i> ISO Mtn for New Trial by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Wellman, Scott) (Entered: 10/26/2018)
10/26/2018	262	Amended MOTION for New Trial by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Wellman, Scott) (Entered: 10/26/2018)
10/29/2018	263	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES:re: 260 Declaration, 261 Declaration filed by attorneyChris Andrew Wellman.The s/signature did not match the filers name on the account for which the login and password are registered. DO NOT REFILE THE DOCUMENT. Action to

		take - future documents must be filed pursuant to D.C.COLO.LCivR 5.1(a) and 4.3(c) of the Electronic Case Filing Procedures (Civil cases).(Text Only Entry) (dkals,) (Entered: 10/29/2018)
10/29/2018	264	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 262 Amended MOTION for New Trial filed by attorney Scott W. Wellman.The document was scanned and not converted directly to portable document format (PDF). DO NOT REFILE THE DOCUMENT. Action to take - future documents must be filed pursuant to D.C.COLO.LCivR 5.1(a) and 1.3(f) of the Electronic Case Filing Procedures (Civil cases). (Text Only Entry) (dkals,) (Entered: 10/29/2018)
10/30/2018	265	MINUTE ORDER: The Court has been informed that counsel has been citing the reporter's rough transcript. As I believe counsel have been informed, the reporter is working on a final, certified transcript to fill an order from someone in the California case. She indicated that it would take 60 days, which is reasonable given the length of the trial and our ongoing work on other cases. She is already about 30 days into it. For any part of the transcript that a party believes it is critical for the Court to review it for purposes of a post-trial motion, please provide the certified transcript. If you do not believe that review of the transcript is critical, then please inform the Court as to that issue or portion of a motion, as I do not want any party to incur unnecessary expense. However, I do not anticipate reviewing the rough transcript. Thank you. By Judge R. Brooke Jackson on 10/30/18. Text Only Entry (rbjsec.) (Entered: 10/30/2018)
10/31/2018	266	MOTION for Extension of Time to <i>Submit Motion for New Trial with Certified Transcripts</i> by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Wellman, Scott) (Entered: 10/31/2018)
10/31/2018	267	DECLARATION of <i>Scott Wellman ISO Req for Extension</i> by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Wellman, Scott) (Entered: 10/31/2018)
10/31/2018	268	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES:re: 267 Declaration filed by attorney Scott W. Wellman.Attorney or pro se has used an incorrect signature format in violation of D.C.COLO.LCivR 5.1(a) and 4.3(a) of the Electronic Case Filing Procedures (Civil cases). DO NOT REFILE THE DOCUMENT. (Text Only Entry) (dkals,) (Entered: 10/31/2018)
10/31/2018	269	RESPONSE to 266 MOTION for Extension of Time to <i>Submit Motion for New Trial with Certified Transcripts</i> filed by Defendant Steven Hake. (Hensen, Stephen) (Entered: 10/31/2018)
11/01/2018	270	ORDER granting 266 MOTION for Extension of Time to Submit Motion for New Trial with Certified Transcripts. By Judge R. Brooke Jackson on 11/1/18. Text Only Entry (rbjsec.) (Entered: 11/01/2018)
11/09/2018	271	Unopposed MOTION for Extension of Time to File Answer or Otherwise Respond re 270 Order on Motion for Extension of Time to File, 262 Amended MOTION for New Trial by Defendants Claud Bays, Michael Bonnet, William Cooper, Steven Hake. (Attachments: # 1 Proposed Order (PDF Only) Re: Extension of Time)(Homiak, Kevin) (Entered: 11/09/2018)
11/13/2018	272	ORDER granting 271 Unopposed MOTION for Extension of Time to File Answer or Otherwise Respond re 270 Order on Motion for Extension of Time to File, 262 Amended MOTION for New Trial. By Judge R. Brooke Jackson on 11/1/318. Text Only Entry (rbjsec.) (Entered: 11/13/2018)
12/06/2018	273	Proposed Bill of Costs <i>Plaintiff's Supplemental Opposition to Defedants' Request for Bill of Costs</i> by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Exhibit)(Wellman, Scott) (Entered: 12/06/2018)

12/10/2018	274	VOIR DIRE TRANSCRIPT of proceedings held on September 10, 2018 before Judge Jackson. Pages: 1-168. (smitc,) (Entered: 12/10/2018)
12/10/2018	275	TRANSCRIPT of Volume II - Jury Trial - Day 1 held on September 10, 2018 before Judge Jackson. Pages: 169-209. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 12/10/2018)
12/10/2018	276	TRANSCRIPT of Volume III - Jury Trial - Day 2 held on September 11, 2018 before Judge Jackson. Pages: 210-386. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 12/10/2018)
12/10/2018	277	TRANSCRIPT of Volume IV - Jury Trial - Day 3 held on September 12, 2018 before Judge Jackson. Pages: 387-590. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 12/10/2018)
12/10/2018	278	TRANSCRIPT of Volume V - Jury Trial - Day 4 held on September 13, 2018 before Judge Jackson. Pages: 591-814. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 12/10/2018)
12/10/2018	279	TRANSCRIPT of Volume VI - Jury Trial - Day 5 held on September 14, 2018 before Judge Jackson. Pages: 815-983. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the

		court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 12/10/2018)
12/10/2018	280	TRANSCRIPT of Volume VII - Jury Trial - Day 6 held on September 17, 2018 before Judge Jackson. Pages: 984-1211. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 12/10/2018)
12/10/2018	281	TRANSCRIPT of Volume VIII - Jury Trial - Day 7 held on September 18, 2018 before Judge Jackson. Pages: 1212-1440. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 12/10/2018)
12/10/2018	282	TRANSCRIPT of Volume IX - Jury Trial - Day 8 held on September 19, 2018 before Judge Jackson. Pages: 1441-1657. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 12/10/2018)
12/10/2018	283	TRANSCRIPT of Volume X - Jury Trial - Day 9 held on September 20, 2018 before Judge Jackson. Pages: 1658-1877. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 12/10/2018)

12/10/2018	284	TRANSCRIPT of Volume XI - Jury Trial - Day 10 held on September 24, 2018 before Judge Jackson. Pages: 1878-2088. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 12/10/2018)
12/10/2018	285	TRANSCRIPT of Volume XII - Jury Trial - Day 11 held on September 25, 2018 before Judge Jackson. Pages: 2089-2328. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 12/10/2018)
12/10/2018	286	TRANSCRIPT of Volume XIII - Jury Trial - Day 12 held on September 26, 2018 before Judge Jackson. Pages: 2329-2502. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 12/10/2018)
12/10/2018	287	TRANSCRIPT of Volume XIV - Jury Trial - Day 13 held on September 27, 2018 before Judge Jackson. Pages: 2503-2614. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 12/10/2018)
12/13/2018	288	Costs Taxed by Clerk in the amount of \$80,000.00 against Plaintiff Licciardi and in favor of Defendants Dr. Bays, Dr. Cooper, and P.A. Bonnet, re Docket No. 255 Proposed Bill of Costs. The Clerk's award made pursuant to Plaintiff's and Defendants Dr. Bays's, Dr. Cooper's, and P.A. Bonnet's agreement and stipulation reached orally at the hearing of Dec. 13, 2018. (ebutl) (Entered: 12/13/2018)
12/21/2018	289	First MOTION for New Trial <i>Plaintiff Christian Licciardi's Amended Motion for New Trial</i> by Plaintiff Christian Licciardi. (Attachments: # 1 Affidavit, # 2 Exhibit, # 3 Exhibit,

		# 4 Exhibit, # 5 Exhibit, # 6 Exhibit, # 7 Exhibit, # 8 Exhibit, # 9 Exhibit, # 10 Exhibit, # 11 Exhibit, # 12 Exhibit, # 13 Exhibit, # 14 Exhibit, # 15 Exhibit, # 16 Exhibit, # 17 Exhibit, # 18 Exhibit, # 19 Exhibit, # 20 Exhibit, # 21 Exhibit, # 22 Exhibit, # 23 Exhibit, # 24 Exhibit, # 25 Exhibit, # 26 Exhibit, # 27 Exhibit, # 28 Exhibit, # 29 Exhibit, # 30 Exhibit, # 31 Exhibit, # 32 Exhibit, # 33 Exhibit, # 34 Exhibit, # 35 Exhibit, # 36 Exhibit, # 37 Exhibit, # 38 Exhibit, # 39 Exhibit, # 40 Exhibit, # 41 Exhibit, # 42 Exhibit, # 43 Exhibit, # 44 Exhibit, # 45 Exhibit)(Wellman, Scott) (Entered: 12/21/2018)
12/24/2018	290	Conventionally Submitted Material: Exhibits to 289 First MOTION for New Trial on 1 DVD by Plaintiff Patrice Stephenson-Licciardi. Text Only Entry (dkals,) Located in Clerk's Office in A-2-1. Modified on 10/8/2020 (jsalz,). (Entered: 12/26/2018)
12/31/2018	291	Unopposed MOTION for Extension of Time to File Response/Reply as to 289 First MOTION for New Trial <i>Plaintiff Christian Licciardi's Amended Motion for New Trial</i> by Defendant Steven Hake. (Attachments: # 1 Proposed Order (PDF Only))(Hensen, Stephen) (Entered: 12/31/2018)
01/02/2019	292	ORDER granting 291 Unopposed MOTION for Extension of Time to File Response/Reply as to 289 First MOTION for New Trial Plaintiff Christian Licciardi's Amended Motion for New Trial. By Judge R. Brooke Jackson on 1/2/19. Text Only Entry (rbjsec,) (Entered: 01/02/2019)
01/02/2019	293	Unopposed MOTION for Extension of Time to File Answer or Otherwise Respond re 289 First MOTION for New Trial <i>Plaintiff Christian Licciardi's Amended Motion for New Trial</i> by Defendants Claud Bays, Michael Bonnet, William Cooper. (Attachments: # 1 Proposed Order (PDF Only))(Homiak, Kevin) (Entered: 01/02/2019)
01/03/2019	294	ORDER granting 293 Unopposed MOTION for Extension of Time to File Answer or Otherwise Respond re 289 First MOTION for New Trial Plaintiff Christian Licciardi's Amended Motion for New Trial by Defendants Claud Bays, Michael Bonnet, William Cooper. By Judge R. Brooke Jackson on 1/4/19. Text Only Entry (rbjsec,) (Entered: 01/03/2019)
01/11/2019	295	MOTION for Leave to File Excess Pages by Defendant Steven Hake. (Attachments: # 1 Proposed Order (PDF Only))(Hensen, Stephen) (Entered: 01/11/2019)
01/11/2019	296	RESPONSE to 289 First MOTION for New Trial <i>Plaintiff Christian Licciardi's Amended Motion for New Trial</i> filed by Defendant Steven Hake. (Attachments: # 1 Exhibit A - Trial Day 3, # 2 Exhibit B- Trial Day 4, # 3 Exhibit C - Trial Day 6, # 4 Exhibit D - Trial Day 8, # 5 Exhibit E - Trial Day 9, # 6 Exhibit F - Trial Day 10, # 7 Exhibit G - Trial Day 11, # 8 Exhibit H - Trial Day 12, # 9 Exhibit I - Instruction No. 18)(Hensen, Stephen) (Entered: 01/11/2019)
01/11/2019	297	RESPONSE to 289 First MOTION for New Trial <i>Plaintiff Christian Licciardi's Amended Motion for New Trial</i> filed by Defendants Claud Bays, Michael Bonnet, William Cooper. (Attachments: # 1 Exhibit A - Trial Transcript (9-11-18), # 2 Exhibit B - Trial Transcript (9-12-18), # 3 Exhibit C - Trial Transcript (9-27-18), # 4 Exhibit D - Trial Transcript (9-20-18), # 5 Exhibit E - Trial Transcript (9-26-18), # 6 Exhibit F - Trial Transcript (9-19-18), # 7 Exhibit G - Trial Exhibit 1, # 8 Exhibit H - Trial Exhibit 5, # 9 Exhibit I - Trial Exhibit WWW, # 10 Exhibit J - Trial Transcript (9.14.18), # 11 Exhibit K - Trial Exhibit 7, # 12 Exhibit L - WWWWWW, # 13 Exhibit M - Trial Transcript 9-17-18), # 14 Exhibit N - Trial Transcript (9-25-18), # 15 Exhibit O - Trial Transcript (9-24-18), # 16 Exhibit P - Trial Transcript (9.13.18))(Homiak, Kevin) (Entered: 01/11/2019)

01/14/2019	298	ORDER granting 295 Unopposed Motion for Leave to File Excess Pages. However, the Court notes that you are actually four pages over the limit, not two. The Court's page limits include the caption of the case, through the certificate of service. By Judge R. Brooke Jackson on 1/14/19. Text Only Entry (rbjsec.) (Entered: 01/14/2019)
01/14/2019	299	NOTICE of Filing Amended Pleading re 254 Proposed Bill of Costs, <i>Amended</i> , by Defendant Steven Hake (Attachments: # 1 Proposed Document Defendant Steven Hake, MD's Amended Bill of Costs)(Hensen, Stephen) (Entered: 01/14/2019)
01/24/2019	300	First MOTION for Leave to <i>File Additional Pages to Plaintiff's Consolidated Reply to Defendants' Oppositions to Plaintiff's Amended Motion for New Trial</i> 297 Response to Motion,,, 296 Response to Motion, by Plaintiff Christian Licciardi. (Wellman, Chris) (Entered: 01/24/2019)
01/24/2019	301	REPLY to Response to 289 First MOTION for New Trial <i>Plaintiff Christian Licciardi's Amended Motion for New Trial</i> filed by Plaintiff Christian Licciardi. (Attachments: # 1 Affidavit, # 2 Exhibit, # 3 Exhibit, # 4 Exhibit, # 5 Exhibit, # 6 Exhibit, # 7 Exhibit, # 8 Exhibit, # 9 Exhibit, # 10 Exhibit, # 11 Exhibit, # 12 Exhibit, # 13 Exhibit, # 14 Exhibit, # 15 Exhibit, # 16 Exhibit, # 17 Exhibit, # 18 Exhibit, # 19 Exhibit, # 20 Exhibit)(Wellman, Chris) (Entered: 01/24/2019)
01/25/2019	302	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 301 Reply to Response to Motion,, filed by attorney Chris Andrew Wellman.The document was scanned and not converted directly to portable document format (PDF). DO NOT REFILE THE DOCUMENT. Action to take - future documents must be filed pursuant to D.C.COLO.LCivR 5.1(a) and 1.3(f) of the Electronic Case Filing Procedures (Civil cases). (Text Only Entry) (dkals,) (Entered: 01/25/2019)
01/28/2019	303	ORDER granting 300 First MOTION for Leave to File Additional Pages to Plaintiff's Consolidated Reply to Defendants' Oppositions to Plaintiff's Amended Motion for New Trial 297 Response to Motion, 296 Response to Motion. By Judge R. Brooke Jackson on 1/28/19. Text Only Entry (rbjsec.) (Entered: 01/28/2019)
02/27/2019	304	Costs Taxed by Clerk in the amount of \$77,730.07 against Plaintiff Patrice Stephenson-Licciardi and in favor of Defendant Steven Hake, M.D., re: Defendant Hake's Proposed Bill of Costs 254 and Amended Bill of Costs 299 and Plaintiff's Opposition 257 and Supplemental Opposition 273 . Final costs proceeding held Feb. 27, 2019 after initial hearing held Dec. 13, 2018. See Taxation of Costs document for Clerk's notes. (ebutl) (Entered: 02/27/2019)
03/05/2019	305	First MOTION for Costs <i>Taxation of Costs</i> by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Wellman, Chris) (Entered: 03/05/2019)
03/25/2019	306	BRIEF in Opposition to 305 First MOTION for Costs <i>Taxation of Costs</i> filed by Defendant Steven Hake. (Hensen, Stephen) (Entered: 03/25/2019)
03/28/2019	307	REPLY to Response to 305 First MOTION for Costs <i>Taxation of Costs</i> filed by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi. (Attachments: # 1 Exhibit, # 2 Exhibit) (Wellman, Chris) (Entered: 03/28/2019)
04/19/2019	308	ORDER finding as moot 262 Motion for New Trial. This motion has been superseded by ECF No. 289. by Judge R. Brooke Jackson on 4/19/19. Text Only Entry (rbj) (Entered: 04/19/2019)
05/01/2019	309	ORDER denying 289 Motion for New Trial; granting in part and denying in part 305 Motion re: Costs by Judge R. Brooke Jackson on 5/1/19.(jdyne,) (Entered: 05/01/2019)

05/29/2019	310	NOTICE OF APPEAL as to 309 Order on Motion for New Trial, Order on Motion for Costs by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi (Filing fee \$ 505, Receipt Number 1082-6712962) (Wellman, Chris) (Entered: 05/29/2019)
05/30/2019	311	LETTER Transmitting Notice of Appeal to all counsel advising of the transmittal of the 310 Notice of Appeal filed by Patrice Stephenson-Licciardi, Christian Licciardi to the U.S. Court of Appeals. (Retained Counsel, Fee paid,) (Attachments: # 1 Preliminary Record)(dkals,) (Entered: 05/30/2019)
05/31/2019	312	USCA Case Number 19-1196 for 310 Notice of Appeal filed by Patrice Stephenson-Licciardi, Christian Licciardi. (dkals,) (Entered: 05/31/2019)
06/14/2019	313	LETTER TO USCA and all counsel certifying the record is complete as to 310 Notice of Appeal filed by Patrice Stephenson-Licciardi, Christian Licciardi. A transcript order form was filed stating that the necessary transcript is already on file. (Appeal No. 19-1196) Text Only Entry (dkals,) (Entered: 06/14/2019)
06/14/2019	314	TRANSCRIPT ORDER FORM re 310 Notice of Appeal by Plaintiffs Christian Licciardi, Patrice Stephenson-Licciardi (Wellman, Scott) (Entered: 06/14/2019)
09/09/2019	315	ORDER of USCA as to 310 Notice of Appeal filed by Patrice Stephenson-Licciardi, Christian Licciardi. "this appeal is dismissed" (USCA Case No. 19-1196) (angar,) (Entered: 09/10/2019)
09/09/2019	316	MANDATE of USCA as to 310 Notice of Appeal filed by Patrice Stephenson-Licciardi, Christian Licciardi : (USCA Case No. 19-1196) (angar,) (Entered: 09/10/2019)

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